

THE NCA HUB

Examination Preparation

CANADIAN FAMILY LAW

COMPREHENSIVE STRATEGIC NOTES

Based on: Payne & Payne, Canadian Family Law, 10th ed. (Irwin Law, 2025)

Revised January 2026 Syllabus | Exam Date: April 13, 2026 (Morning/Afternoon)

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Note on Provincial Variation

The NCA Family Law syllabus is primarily Ontario-based (Divorce Act (federal), Family Law Act (Ontario), Children's Law Reform Act (Ontario)). Candidates practicing outside Ontario should identify their own province's equivalent statutes, but may follow the same topics and analytical framework. These notes use Ontario as the primary jurisdiction.

How to Use These Notes

These Strategic Notes provide comprehensive, exam-focused coverage of every testable topic on the NCA Canadian Family Law syllabus (Revised January 2026). They are your primary open-book reference during the examination and structured revision tool in the weeks beforehand.

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices, laptops, tablets, or phones.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Exam Date	April 13, 2026 (Morning and Afternoon sittings)
Structure	Approximately 5 questions of unequal mark value totalling 100 marks. Based on the sample exam: 10+30+20+20+20 marks. Multi-part questions are common.
Marking	Issue identification + statutory provision (cite the section number) + case principle + application to facts. Bare conclusions without analysis score zero. Citing the wrong statute costs marks.
Key Texts	Divorce Act, R.S.C. 1985, c. 3 (2nd Supp.), as amended; Federal Child Support Guidelines, SOR/97-175; Family Law Act, R.S.O. 1990, c. F.3; Children's Law Reform Act, R.S.O. 1990, c. C.12; Spousal Support Advisory Guidelines (Rogerson/Thompson, 2008, revised 2016).
Primary Text	Payne & Payne, Canadian Family Law, 10th ed. (Irwin Law, 2025). The 10th edition contains updated material including 2024-2025 cases.

Three-Step Study Method

- **Step 1 — STRUCTURE:** Know the federal/provincial split. Before anything else, be able to identify which statute applies to every issue. Applying the wrong statute is the most common exam failure. Use the Master Framework below to build this reflex.
- **Step 2 — CALCULATE:** Practice the NFP equalization calculation and child support table calculations until they are automatic. The sample exam shows that Q5 is always a pure calculation. You must be able to work through it systematically without confusion.
- **Step 3 — APPLY:** In every practice question, cite the section number first, then the case, then apply to facts. Never describe the law without connecting it to the specific facts in the question.

⚠ EXAM TIP — OPEN-BOOK REALITY

Because your notes are in front of you, examiners test application — not recitation. They expect precise statutory citations (Divorce Act s.16(1), FLA s.4(1), CSG s.9(b)) AND case names. A answer that says 'under the legislation, courts consider the best interests of the child' scores almost nothing. An answer that says 'Under Divorce Act s.16(1), the court must consider only the best interests of the child as the sole criterion, including the 16 factors in s.16(3), with family violence being a mandatory consideration under s.16(3)(j) (Barendregt v Grebliunas 2022 SCC 22)' scores marks. TAB this document by Part.

Master Family Law Framework — Apply to Every Problem Question

The single most important analytical skill in Canadian Family Law is identifying WHICH STATUTE applies to WHICH PARTY on WHICH ISSUE. The federal/provincial split is tested on every exam. Get this wrong and all your analysis flows from the wrong source.

THE FEDERAL/PROVINCIAL SPLIT — BUILD THIS REFLEX FIRST	
DIVORCE ACT (Federal — applies to married spouses)	Applies ONLY when married spouses are divorcing or obtaining variation of divorce orders. Covers: grounds for divorce (s.8), parenting orders (ss.16-16.96), child support (s.15.1), spousal support (s.15.2), variation (s.17). The Divorce Act applies in ALL provinces when married spouses are divorcing — it is federal law.
FAMILY LAW ACT (Ontario — applies broadly)	Ontario provincial statute. Applies to MARRIED spouses (for equalization of net family property, matrimonial home, support) and COHABITING SPOUSES (for support, if 3+ years or child together). DOES NOT provide equalization rights to unmarried cohabitants — only married spouses get equalization of NFP. FLA applies whether or not the parties are divorcing.
CHILDREN'S LAW REFORM ACT (Ontario — parenting outside divorce)	Ontario provincial statute. Applies to parenting disputes where the parties are NOT proceeding under the Divorce Act — i.e., unmarried parents, or married parents who are not yet divorcing. Provides for parenting orders (s.21), contact orders, assessments (s.30), mediation (s.31), and jurisdiction (s.22 habitual residence — Dunmore v Mehralian 2025 SCC 20).
FEDERAL CHILD SUPPORT GUIDELINES (federal regulation)	Made under s.26.1 Divorce Act. Apply when child support is sought in divorce proceedings (Divorce Act s.15.1). Ontario also has Ontario Child Support Guidelines (Ont. Reg. 391/97) that apply to child support under the FLA and CLRA. The federal and Ontario guidelines use the same tables.
SPOUSAL SUPPORT ADVISORY GUIDELINES (SSAG)	NOT legally binding — they are an informal tool used by courts and lawyers to calculate spousal support ranges. Courts must still conduct the full entitlement analysis (Moge, Bracklow, Miglin) before applying the SSAG. The SSAG provide 'with child support' and 'without child support' formulas producing duration and quantum ranges.

The Universal Family Law Checklist — Apply to Every Problem Question

1. IDENTIFY THE PARTIES: Are they married? Cohabiting? Duration of relationship? Children? This determines which statutes apply.
2. IDENTIFY THE PROCEEDINGS: Are they divorcing (Divorce Act applies)? Seeking provincial orders only (FLA/CLRA applies)? Both?
3. IDENTIFY THE ISSUES: Support? Property? Parenting? Domestic contract? Each issue has its own statutory regime.
4. CITE THE STATUTE: For every issue, state the exact provision. 'Under s.15.2 of the Divorce Act...' 'Under s.4(1) of the FLA...' Section numbers are mandatory.
5. CITE THE CASE: Apply the leading authority. For spousal support: Moge, Bracklow, Miglin. For child support: the Guidelines, Chartier, Contino. For parenting: Divorce Act ss.16(1)-(7), Barendregt 2022. For equalization: FLA ss.4-5.
6. APPLY TO FACTS: Connect every rule to specific facts using 'because' or 'on the facts.' Never end with a rule statement alone.
7. CONCLUDE: State the outcome clearly — what order should be made and why.

⚠ EXAM TIP — THE FIVE EXAM QUESTION TYPES — FROM THE SAMPLE EXAM

Q1: Jurisdiction (10 marks) — always short, foundational — which court, which province, transfer. Q2: Parenting (30 marks) — always the biggest question — best interests, CLRA vs Divorce Act, variation, ADR. Q3: Child Support (20 marks) — always involves calculations — table amounts, s.7 expenses, multiple obligors, high income. Q4: Domestic Contracts (20 marks) — consistently tested — setting aside, waiver, disclosure, Miglin. Q5: Equalization of NFP (20 marks) — always a calculation with

excluded property analysis.

PART I

CONSTITUTIONAL FRAMEWORK, MARRIAGE, AND UNMARRIED COHABITANTS

Chapter 1: Constitutional Framework — The Federal/Provincial Division

1.1 The Constitutional Division of Family Law Powers

Family law in Canada is divided between federal and provincial jurisdiction under the Constitution Act, 1867. Understanding this division is essential because applying the wrong statute is the most common mistake NCA candidates make.

FEDERAL POWER (Constitution Act, 1867, s.91)	PROVINCIAL POWER (Constitution Act, 1867, s.92)
s.91(26): Marriage and Divorce Federal Parliament has exclusive jurisdiction over the substantive law of MARRIAGE (validity, who may marry) and DIVORCE (grounds, procedures, corollary relief on divorce including parenting and support orders).	s.92(12): Solemnization of Marriage Provinces regulate the CEREMONY and FORMAL REQUIREMENTS of marriage — licences, officiants, registration. The form of marriage is provincial; the substance is federal.
The Divorce Act (federal) governs divorce and all corollary proceedings — parenting orders, support orders, variation of divorce orders.	s.92(13): Property and Civil Rights Provinces regulate property rights between spouses (equalization of net family property under the FLA), domestic contracts, support obligations outside divorce, and parenting orders outside divorce (CLRA).

⚠ EXAM TIP — THE CRITICAL PRINCIPLE

Married spouses divorcing → Divorce Act (federal) applies for divorce, parenting, and support.
 Married spouses not divorcing / unmarried cohabitants → FLA and CLRA (provincial) apply. Both regimes can apply simultaneously to different aspects of the same case: a divorcing couple can seek a divorce order under the Divorce Act AND equalization of NFP under the FLA at the same time.

1.2 Jurisdiction of Courts — The Fragmentation Problem

Family law jurisdiction in Ontario is divided between the Ontario Court of Justice (OCJ) and the Superior Court of Justice (SCJ). This fragmentation is a recurring exam topic.

- Superior Court of Justice: Has jurisdiction over divorce (Divorce Act), equalization of NFP (FLA), and all other family law matters. The ONLY court that can grant a divorce.
- Ontario Court of Justice: Has jurisdiction over matters under the FLA and CLRA (parenting, support) but CANNOT grant a divorce. If parties want a divorce, they must proceed in the SCJ.
- Family Court Branch of the SCJ: Exists in some Ontario regions and has unified jurisdiction — can hear all family matters under both the Divorce Act and provincial legislation in a single proceeding.
- Practical consequence: Parties seeking both a divorce AND provincial remedies (equalization, domestic contracts) must consolidate in the SCJ. Parties seeking only provincial remedies (parenting, support) may use the OCJ or SCJ.

1.3 Recognition of Same-Sex Marriage — Civil Marriage Act

The Civil Marriage Act, S.C. 2005, c. 33 extended civil marriage to same-sex couples across Canada. Key provisions:

- S.2: Marriage, for civil purposes, is the lawful union of two persons to the exclusion of all others.
- S.3: It is not contrary to the Canadian Charter of Rights and Freedoms to perform a religious marriage ceremony only for persons who are of the same sex.
- S.5: A marriage that is valid where it took place and that would be valid in Canada but for the fact that the parties are of the same sex is recognized for all purposes of federal law as a valid marriage.
- Non-resident same-sex marriages: The Civil Marriage of Non-Residents Act, S.C. 2013, c. 32 resolved the 'divorce trap' for non-resident same-sex couples married in Canada who could not divorce in their home country. Courts in Canada can now grant divorces to non-resident same-sex couples married in Canada even if neither party is domiciled in Canada.

Chapter 2: Formation and Annulment of Marriage

2.1 Formation of Marriage — Capacity and Form

Marriage in Canada requires both formal validity (the ceremony follows provincial requirements) and essential validity (the parties have capacity to marry).

FORMAL VALIDITY (Provincial)	ESSENTIAL VALIDITY (Federal)
Governed by provincial legislation (e.g., Ontario Marriage Act). Requirements: marriage licence, authorized officiant, two witnesses, registration. Failure of formal requirements may render a marriage voidable but not necessarily void.	Governed by federal common law. Includes: capacity (age, mental capacity, absence of prior subsisting marriage), absence of prohibited degrees of consanguinity, and genuine consent (free and voluntary consent of both parties).

Void vs Voidable Marriages

VOID MARRIAGE	VOIDABLE MARRIAGE
Void ab initio — never legally existed. No decree required to establish invalidity, though courts may declare it void. Cannot be ratified. Grounds: prohibited degrees of consanguinity (incest), prior subsisting valid marriage (bigamy), same-sex marriage before it was	Valid until annulled by a court decree. Can be ratified by subsequent cohabitation. Grounds: impotence (inability to consummate — must be permanent and incurable), lack of genuine consent (duress, fraud as to the nature of the ceremony, mistake as to the identity of the other

legally permitted.

party), mental incapacity at the time of marriage.

Annulment vs Divorce

Annulment declares that a valid marriage never existed — the parties were never legally married. Divorce dissolves a valid marriage. The practical significance in Canada is limited because divorced persons and annulled persons have essentially the same rights to property and support. However, annulment remains important where divorce would have religious consequences or where a party wants to establish they were never validly married.

2.2 Marriage Breakdown vs Nullity — Key Distinction

Marriage breakdown (ground for divorce under Divorce Act s.8) assumes a valid marriage existed and has irretrievably broken down. Nullity/annulment assumes no valid marriage ever existed. A petitioner cannot seek both — they must elect one or the other. If nullity is established, divorce proceedings become unnecessary.

⚠ EXAM TIP — ANNULMENT EXAM ISSUES

When a fact pattern mentions: (1) an earlier undisclosed marriage (bigamy → void marriage); (2) a ceremony where a party claims they did not understand they were marrying (mistake as to nature of ceremony → voidable); (3) impotence concealed before marriage (→ voidable); identify the correct legal category (void/voidable), whether it has been ratified, and the appropriate remedy (nullity vs divorce).

2.3 Prohibited Degrees of Consanguinity and Affinity

Canadian federal law (Marriage (Prohibited Degrees) Act, S.C. 1990, c. 46) specifies that no person shall marry another person if they are related by:

- Direct lineal relationship: parent–child, grandparent–grandchild (cannot marry regardless of how many generations removed).
- Siblings: brothers and sisters — including half-siblings and adopted siblings.
- Adoptive relationships: adoptive parent and child cannot marry.

Marriages between cousins and between uncle/aunt and nephew/niece are NOT prohibited under Canadian federal law — though they may be morally controversial. Only the specific relationships listed in the federal Act are prohibited.

2.4 Capacity to Marry — Mental Capacity and Duress

A valid marriage requires genuine, free, and voluntary consent from both parties at the time of the ceremony. The following vitiates consent:

VITIATING FACTOR	LEGAL EFFECT AND TEST
Mental Incapacity	A person lacks capacity to marry if at the time of the ceremony they are unable to: (a) understand the nature and character of marriage; (b) understand the duties and responsibilities of marriage; or (c) comprehend the commitment they are making. The test is assessed AT THE TIME OF THE CEREMONY — prior history of mental illness is not dispositive if the person had capacity at the relevant moment. A marriage contracted during a lucid interval is valid.

Duress (Physical)	Where consent is obtained through actual or threatened physical violence against the party or their family, the marriage is voidable. The threat must be of a serious character — social or family pressure, even intense pressure, does not normally amount to legal duress.
Duress (Forced Marriage)	Forced marriage (where consent is obtained by coercion of any kind, including threats to honour, social ostracism, or emotional manipulation) is a form of duress. Canada has taken legislative and common law steps to recognize that 'forced marriages' vitiate true consent.
Mistake as to the Nature of the Ceremony	Where a party did not understand they were participating in a marriage ceremony — for example, they believed it was a religious blessing or theatrical performance — the marriage is void. Mistake as to the IDENTITY of the other party (extreme rarity) also voids the marriage.
Fraud as to Essential Quality	Fraud as to an ESSENTIAL quality of the other party — such as undisclosed pre-existing pregnancy by a third party — may vitiate consent. Courts have been reluctant to expand this category broadly.

2.5 Sham Marriages and Immigration Context

A 'marriage of convenience' entered solely to obtain immigration status does not automatically void the marriage if both parties genuinely understood and consented to the legal institution of marriage. Canadian courts have distinguished between a marriage where the parties intend to live as spouses (valid, even if a secondary purpose is immigration) and one where both parties agree it is a fiction with no genuine marital intention (may be void for lack of genuine consent to the marriage relationship).

XWL v JL, 2021 BCSC 860	Addressed the validity of a marriage contracted by parties with different understandings of the marital commitment. The court distinguished between cultural practices surrounding marriage ceremonies and the legal requirements for a valid marriage. The decision illustrates the tension between respecting diverse cultural approaches to marriage and ensuring genuine consent to the legal institution.
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Chapter 3: Rights of Unmarried Cohabitants

Unmarried cohabitants (common law partners) have fundamentally different legal rights than married spouses in Ontario. This distinction is one of the most frequently tested exam topics. The key rule: cohabitants do NOT have equalization rights under the FLA. They may have support rights and trust-based property rights.

3.1 Support Rights of Unmarried Cohabitants

Under the Ontario Family Law Act, ss. 29-30, a cohabiting spouse may claim support from their partner if they have:

8. Cohabited CONTINUOUSLY for at least THREE YEARS; OR
9. Cohabited in a relationship of some permanence and are the natural or adoptive parents of a child.

The definition of 'spouse' for support purposes under FLA s.29 is broader than for property purposes under FLA s.1. Two persons may be spouses for SUPPORT purposes (ss.29-33) without being spouses for PROPERTY purposes (Part I of the FLA, which applies only to married persons).

FLA s.29

Definition of 'spouse' for support includes persons who have cohabited continuously for not less than three years, or who are in a relationship of some permanence and are the parents of a child — whether or not they were ever married to each other.

3.2 Property Rights of Unmarried Cohabitants — Trust Law

Because cohabitants have NO equalization rights under the FLA Part I, their property claims on relationship breakdown must be pursued through trust law — constructive trust (unjust enrichment) or resulting trust.

Kerr v Baranow; Vanasse v Seguin [2011] 1 SCR 269

The definitive SCC authority on property claims between unmarried cohabitants. The Court unified the law of unjust enrichment and constructive trust in the cohabitation context. Key holdings: (1) UNJUST ENRICHMENT: The plaintiff must prove (a) an enrichment of the defendant; (b) a corresponding deprivation of the plaintiff; (c) the absence of a juristic reason for the enrichment. (2) JOINT FAMILY VENTURE: Where cohabitants have worked together to accumulate assets through a 'joint family venture,' the appropriate remedy may be a proportionate share of the accumulated wealth, rather than compensation for specific contributions. Factors for joint family venture: mutual effort, economic integration, actual intent, priority of family. (3) The unjust enrichment analysis focuses on the whole relationship, not specific transactions — domestic labour, sacrificed career opportunities, and financial contributions all count.

Kassabian v Marcarian, 2025 ONCA 239

New ONCA case applying Kerr v Baranow to a specific cohabitation relationship. The court confirmed that where a cohabitant has made substantial contributions to the accumulation of wealth during the relationship — including non-financial contributions such as homemaking and caregiving — unjust enrichment may entitle them to a proportionate share of the wealth accumulated through the joint family venture.

Constructive Trust Remedy — Quantification

- Where unjust enrichment is established, the court may impose a constructive trust over specific property, giving the claimant a proprietary interest in that property.
- Alternatively, the court may award a monetary remedy (quantum meruit or quantum valebat) for the value of contributions.
- For joint family ventures, the appropriate quantum is a proportionate share of the overall value accumulated through the joint effort — similar in effect to (but legally distinct from) equalization.

3.3 Cohabitants vs Married Spouses — The Critical Comparison

ISSUE	MARRIED SPOUSES	UNMARRIED COHABITANTS
Equalization of NFP	YES — FLA Part I. Automatic entitlement on triggering event.	NO — no equalization rights. Must rely on trust law (Kerr v Baranow).
Matrimonial Home	YES — possession rights, consent required for disposition (FLA ss.19-	NO — no matrimonial home rights. Ordinary property law applies.

	24).	
Spousal Support	YES — Divorce Act (if divorcing) or FLA ss.29-33 (if not divorcing).	YES if 3+ years cohabitation OR child together — FLA s.29.
Child Support	YES — all parents owe child support regardless of marital status.	YES — same rules apply as married parents.
Domestic Contracts	Marriage contracts and separation agreements (FLA ss.51-54).	Cohabitation agreements (FLA s.53). Enforceable on same terms.

⚠ EXAM TIP — COHABITANT PROPERTY TRAP

The most common exam trap on cohabitant rights: a student correctly identifies that the parties cohabited and then applies the FLA equalization provisions. This is **WRONG**. Only **MARRIED** spouses get equalization under the FLA. Cohabitants must go through unjust enrichment / constructive trust (*Kerr v Baranow*). Always check the marital status of the parties before applying any property regime.

Chapter 3A: Cohabitants — Unjust Enrichment and Quantification in Depth

3A.1 The Unjust Enrichment Framework — Full Analysis

Kerr v Baranow [2011] 1 SCR 269 is required reading on the syllabus. The full framework requires mastery of each element and the remedial approach.

UNJUST ENRICHMENT — THREE ELEMENTS (KERR V BARANOW)	
ELEMENT 1 Enrichment of the Defendant	The defendant (the partner retaining property) must have been enriched. Enrichment includes: financial contributions to property purchase or mortgage payments; domestic labour and services (cooking, cleaning, child care) that freed the defendant to earn income or build the business; direct contribution to business operations; foregone career opportunities benefiting the defendant's career. Key principle: Domestic labour is VALUABLE and counts as a contribution to enrichment. The historical approach that treated homemaking as economically valueless has been rejected. A partner who spent years maintaining the household and raising children while the other built a business enriched the other through that labour.
ELEMENT 2 Corresponding Deprivation of the Plaintiff	There must be a corresponding deprivation. The claimant must have given something of value that they did not receive back. This mirrors the enrichment — what the defendant gained, the claimant lost. Deprivation includes: money spent or invested; labour provided without equivalent compensation; career sacrifices (reduced income, foregone promotions, retraining opportunities forgone); assets brought into the relationship that were consumed.
ELEMENT 3	There must be no juristic reason (legal justification) for the enrichment. Juristic

Absence of Juristic Reason	reasons would include: a valid contract that compensates the claimant (e.g., wages paid for services); a gift (if the claimant intended to give the contribution as a gift, there is a juristic reason); statutory provision; other legal obligation. The burden initially lies on the claimant to show no recognized juristic reason. It then shifts to the defendant to rebut. In cohabitation cases, contributions are generally not intended as gifts — the parties expected a mutual relationship, not uncompensated service.
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3A.2 Joint Family Venture — The Remedial Approach

Once unjust enrichment is established, *Kerr v Baranow* introduced the 'joint family venture' analysis to determine the appropriate remedy. This is the most significant remedial development.

JOINT FAMILY VENTURE — FOUR FACTORS	
FACTOR 1 Mutual Effort	Did the parties work collaboratively as a team? Were decisions made jointly? Did each party contribute to shared goals? Where parties ran a business together, managed shared finances, or made joint decisions about significant purchases and investments, mutual effort is established.
FACTOR 2 Economic Integration	Were the parties financially intertwined? Did they have joint accounts, joint property ownership, shared debt? Did they pool resources and income? Deep economic integration over a long period strongly supports a joint family venture.
FACTOR 3 Actual Intent	Did the parties actually intend to operate as joint partners in building wealth? While subjective intent is not determinative (courts look at conduct, not only statements), evidence that parties explicitly discussed sharing everything — or behaved as if they did — supports the joint family venture finding.
FACTOR 4 Priority of the Family	Did the parties prioritize the family unit over individual financial interests? Did one party sacrifice career advancement or income for the family (reducing their own wealth while benefiting the family)? This factor directly captures the common situation where one partner reduces paid work to care for children.

Quantification Under Joint Family Venture

Where a joint family venture is established, the appropriate remedy is a PROPORTIONATE SHARE of the wealth accumulated through the joint effort:

10. Identify the property accumulated through the joint family venture — the pool of assets attributable to the parties' joint efforts.
11. Determine each party's relative contribution to that accumulation — considering financial contributions, domestic labour (valued at replacement cost), career sacrifices, and other contributions.
12. Award the claimant their proportionate share.

This approach is analytically similar to (but legally distinct from) equalization under the FLA. It produces a property-sharing outcome for cohabitants without importing the specific FLA formula.

3A.3 Resulting Trust — The Alternative Claim

Where unjust enrichment is not made out, a cohabitant may alternatively claim a **RESULTING TRUST** over specific property. A resulting trust arises where one party contributes to the **PURCHASE PRICE** of property registered in the other's name — the law presumes the property is held on trust for the contributor in proportion to their contribution.

- Example: A and B are cohabiting. They both contribute equally to the down payment on a house, but the house is registered in B's name alone. B holds 50% of the house on resulting trust for A.
- Resulting trust requires proof of actual contribution to the specific **PURCHASE PRICE** — domestic labour, later mortgage payments, or contributions to improvements do not give rise to a resulting trust (though they may support unjust enrichment).
- The resulting trust approach is often less advantageous than the unjust enrichment/joint family venture approach because it is limited to property purchased with direct financial contributions.

⚠ **EXAM TIP — COHABITANT PROPERTY CLAIM — STRUCTURE**

When a cohabitation relationship ends and property is in dispute: (1) Confirm parties are cohabitants (NOT married). (2) No equalization rights. (3) Identify the property in dispute. (4) Apply *Kerr v Baranow* unjust enrichment — prove enrichment, corresponding deprivation, and no juristic reason. (5) If joint family venture factors satisfied → proportionate share of jointly accumulated wealth. (6) If not → specific monetary remedy or resulting trust on specific property. (7) Cite *Kassabian v Marcarian* 2025 ONCA 239 as recent authority.

Chapter 6C: Parentage — CLRA Part I

Parentage — who is legally a child's parent — is an increasingly important topic in Canadian family law, particularly as assisted reproduction becomes more common. It is specifically listed on the 2026 syllabus.

6C.1 The Common Law Presumption of Parentage

At common law, the marital presumption holds that a child born to a married woman is presumed to be the child of her husband. This presumption can be rebutted by DNA evidence establishing a different biological father. In Ontario, the CLRA Part I has largely codified and updated parentage rules.

6C.2 Parentage Under the CLRA — All Families Are Equal Act

Ontario's All Families Are Equal Act, 2016, significantly amended the Children's Law Reform Act to address parentage in the context of assisted reproduction and diverse family structures. Key provisions:

- A person who is a birth parent is a parent of the child.
- Two persons who are spouses at the time of a child's conception through assisted reproduction are parents if they jointly consented to the assisted reproduction.
- Up to **FOUR PARENTS** may be recognized where persons entered into a parentage agreement before conception through assisted reproduction.
- Sperm donors and egg donors who are not parties to a parentage agreement are **NOT** parents — donation alone does not create parentage.
- The Act abolished the distinction between 'legitimate' and 'illegitimate' children — all children have equal status regardless of whether their parents were married.

Leckey, Robert, 'One Parent, Three Parents: Judges and Ontario's All

Required academic reading on the syllabus. Leckey critically examines the All Families Are Equal Act's approach to parentage, particularly how courts have managed multi-parent situations and the Act's

**Families are Equal Act, 2016' (2019), 33:3
International Journal of Law, Policy and the Family 298-315**

interaction with existing common law. The article highlights how the Act enables up to four legal parents but raises questions about how courts manage disputes involving multiple parents, and how the Act balances biological, intentional, and functional approaches to parenthood.

6C.3 Practical Impact on Child Support and Parenting Orders

- Where more than two persons are legal parents of a child, ALL legal parents have both rights and obligations with respect to the child — including the obligation to pay child support.
- Parenting orders may need to address the rights and responsibilities of multiple parents, with appropriate provisions for each parent's parenting time and decision-making authority.
- The 'standing in the place of a parent' doctrine (Chartier) is separate from and in addition to legal parentage — a person who is neither a biological parent nor a legal parent under the CLRA may still stand in the place of a parent and thereby incur support obligations.

⚠ EXAM TIP — PARENTAGE IN THE EXAM

If a fact pattern involves assisted reproduction, sperm/egg donation, or a family structure beyond the traditional two biological parents — ask: (1) Who is a legal parent under the CLRA All Families Are Equal Act? (2) Does any non-parent stand in the place of a parent under Chartier? (3) What support obligations flow from each relationship? (4) What parenting rights does each parent have? The syllabus reference to the Leckey article signals that questions may arise about multi-parent situations.

PART II

DIVORCE — GROUNDS, JURISDICTION, AND PROCESS

Chapter 4: Divorce — Grounds, Bars, and Effects

4.1 The Sole Ground for Divorce

Under the Divorce Act, s.8(1), a court may grant a divorce on the sole ground that there has been a breakdown of the marriage. Marriage breakdown is established in one of three ways (s.8(2)):

DIVORCE ACT S.8(2) — THREE WAYS TO ESTABLISH MARRIAGE BREAKDOWN

s.8(2)(a) Separation for ONE YEAR

The spouses have lived separate and apart for at least one year immediately before the divorce judgment — AND they are still living separate and apart when the judgment is granted.

This is the overwhelming majority of divorces in Canada. There is no need to prove fault.

	Critical rules: (a) A spouse may commence divorce proceedings BEFORE the one-year separation period expires — the action may begin on the first day of separation, even though the judgment cannot issue until the year is complete. (b) Periods of resumed cohabitation of LESS THAN 90 DAYS do not reset the one-year clock — they are excluded if the reconciliation attempt fails (s.8(3)(b)). A period of resumed cohabitation of 90 DAYS OR MORE breaks the continuity and the one-year period starts over.
s.8(2)(b)(i) ADULTERY	The spouse against whom the divorce is sought has committed adultery. Important limitations: (1) Adultery is ONLY grounds for the innocent spouse — the adulterous spouse CANNOT use their own adultery as grounds. (2) Adultery does not require a full sexual act — intimacy of sufficient character suffices. (3) Adultery grounds are rarely used in practice because one year separation is simpler and less adversarial.
s.8(2)(b)(ii) PHYSICAL or MENTAL CRUELTY	The spouse against whom the divorce is sought has treated the petitioner with physical or mental cruelty of such a kind as to render intolerable the continued cohabitation of the spouses. The cruelty must be of sufficient gravity — not minor incompatibilities or personality differences. Courts apply a subjective test: was continued cohabitation rendered intolerable to THIS petitioner? Cruelty grounds are also rarely used in modern practice.

4.2 Bars to Divorce (Divorce Act s.11)

Section 11 of the Divorce Act imposes duties on the court — not on the parties — to consider specific bars before granting a divorce. The court has a statutory duty to examine these matters even if the parties do not raise them.

BAR	CONTENT AND EFFECT
S.11(1)(a) Collusion	The court must refuse to grant a divorce if there is collusion between the spouses to fabricate or suppress evidence. Collusion undermines the integrity of the divorce process. Note: separation by agreement is NOT collusion — parties can agree to separate without this amounting to collusion.
S.11(1)(b) Condonation	Where adultery or cruelty is alleged, the court must refuse the divorce if the petitioner has condoned the misconduct — i.e., with full knowledge of the grounds, forgiven the spouse and resumed the marital relationship. One-year separation grounds are not subject to the condonation bar.
S.11(1)(c) Connivance	The court must refuse a divorce where the petitioner has connived at or actively encouraged the commission of adultery by the respondent. Passive knowledge without encouragement is not connivance.
S.11(1)(d) Reconciliation (Duty of the Court)	The court has a positive duty to satisfy itself that reasonable arrangements have been made for support of any children of the marriage. If no reasonable arrangements have been made, the court stays the divorce proceedings until satisfactory arrangements are made. This is the most practically significant bar — it directly links divorce to child support obligations.
S.11(2) — Religious Divorce	<i>Braker v Marcovitz</i> [2007] 3 SCR 607: A Jewish husband who refused to give his wife a religious get (divorce) for 15 years after civil divorce was ordered to pay \$47,500 in damages. The SCC held that a contractual

promise to grant a religious divorce is enforceable — religious beliefs do not automatically override contractual obligations where the person has chosen to enter a binding contract.

**Bruker v Marcovitz [2007]
3 SCR 607**

Mr. Marcovitz promised in the separation agreement to grant his wife a religious get (Jewish divorce) but refused for 15 years. The SCC held (7:2) that the contractual promise was enforceable and awarded damages. Religious beliefs do not automatically trump contractual obligations. The court rejected the argument that this was a purely religious matter beyond civil courts' jurisdiction — it was fundamentally a contractual obligation Marcovitz had freely chosen to undertake.

4.3 Effect of Divorce

- Under Divorce Act s.12, the divorce takes effect on the 31st day after the judgment, unless the court specifically orders an earlier effective date (rare).
- Under s.13, once the divorce takes effect, the parties are free to remarry. They are no longer married for any legal purpose.
- Under s.14, the court clerk provides certified copies of the divorce order to the parties.
- Corollary relief orders (parenting, support) may remain in force after the divorce is effective and may be varied under s.17.

4.4 Recognition of Foreign Divorces (Divorce Act s.22)

Under Divorce Act s.22, a foreign divorce is recognized in Canada if either spouse was ordinarily resident in the foreign country for at least one year before the divorce proceedings were commenced.

**Sonia v Ratan, 2024 ONCA
152**

New ONCA case on recognition of foreign divorces. The ONCA confirmed the s.22 requirements and examined a marriage performed outside Canada followed by a foreign divorce. The court applied the 'ordinarily resident' test to determine whether the foreign divorce should be recognized. Where the parties satisfy s.22's requirements, the foreign divorce is binding and Ontario courts cannot grant a fresh divorce.

**Vyazemskaya v Safin,
2024 ONCA 156**

Companion ONCA case on foreign divorce recognition. The court confirmed that recognition of a foreign divorce does not automatically mean recognition of all corollary relief in the foreign order — corollary relief (parenting orders, support) must separately satisfy Ontario requirements for recognition or can be independently determined by Ontario courts.

Chapter 5: Jurisdiction in Family Law

5.1 Jurisdiction Under the Divorce Act

Under the Divorce Act, the court has jurisdiction to hear divorce proceedings if EITHER spouse has been ordinarily resident in the province for at least one year immediately before the proceedings are commenced (s.3(1)).

DIVORCE ACT JURISDICTION — TRANSFER PROVISIONS

S.3(1) — Basic Jurisdiction	A court in a province has jurisdiction to hear and determine a divorce proceeding if either spouse has been ordinarily resident in that province for at least one year immediately before the proceedings were commenced. NOTE: The one-year residency requirement is for divorce jurisdiction — it is separate from the question of which province's law governs. Where both spouses are ordinarily resident in different provinces, BOTH provinces potentially have jurisdiction.
S.6(1) — Transfer of Proceedings	Where proceedings are commenced in one province and the other spouse resides in another province, and corollary relief is sought affecting children, the court may transfer the proceeding to the province where the children are most closely connected. Basis for transfer: The court weighs which province is the more appropriate forum, considering where the children live, where the evidence is, and the convenience of the parties. The BEST INTERESTS OF THE CHILD is the paramount consideration in transfer decisions affecting parenting.
S.3(3) — Simultaneous Proceedings	Where divorce proceedings are commenced simultaneously in multiple provinces, the matter is transferred to the Federal Court to determine which provincial court proceeds. This is rare but the exam has tested it.

⚠ EXAM TIP — JURISDICTION SAMPLE EXAM Q1

The sample exam Q1 asked: Sophia in Vancouver, Boris in Toronto, Igor lives with Boris in Toronto. Sophia started divorce in BC. Boris wants transfer to Ontario. Analysis: (1) Sophia has been ordinarily resident in BC for 1 year → BC has jurisdiction under s.3(1). (2) Boris seeks transfer under s.6(1) because the child Igor lives in Ontario (Toronto). (3) The court considers where Igor is most closely connected — Ontario is his home province. (4) Transfer should be granted to Ontario because the child's life and most of the evidence about him is there. The best interests of Igor point toward Ontario as the more appropriate forum.

5.2 Jurisdiction Under the CLRA — Habitual Residence

Where parenting proceedings arise outside of divorce (unmarried parents, or married parents not yet divorcing), jurisdiction over parenting orders is governed by CLRA s.22. The CLRA grants jurisdiction to Ontario courts when the child is HABITUALLY RESIDENT in Ontario at the commencement of the proceedings.

Dunmore v Mehralian, 2025 SCC 20

THE MOST IMPORTANT NEW CASE ON THE 2026 SYLLABUS. The SCC definitively resolved the meaning of 'habitual residence' for children under CLRA s.22. FACTS: The mother was an Iranian citizen and permanent resident of Canada; the father was a Canadian citizen. They married in 2015, lived in various countries for the father's work, and moved to Canada in March 2020 before separating in May 2021. The child was born in Ontario. When the parties separated, the father went to Oman and commenced custody proceedings there. The mother commenced Ontario proceedings. The father argued Ontario had no jurisdiction because the family's 'shared parental intention' was to reside in Oman. HELD (8:1, Martin J. for the majority): Ontario courts properly took jurisdiction. The guiding principle for 'habitual residence'

under CLRA s.22 is WHETHER THE CHILD WAS 'AT HOME' in Ontario — not whether the parents had a settled shared intention to reside there. The court applies a contextual, fact-based approach that examines all relevant circumstances of the child's life. The 'parental intention' test is rejected as the determinative criterion. SECTION 22 ANALYSIS: Under s.22(2), 'habitually resident' is defined by where the child resided at a 'prescribed time' — the last time the child resided with both parents together. The child resided in Ontario at the time the family separated. Therefore, Ontario was the place of habitual residence. KEY PRINCIPLE: 'We are not in search of legal formalities here, but must remain squarely focused on the child's life and circumstances when asking where they reside.' The test is contextual, child-centred, and focused on where the child actually lived — not on the parents' intentions about where they planned to live.

Applying Dunmore — The 'At Home' Test for CLRA s.22

CLRA S.22 — HABITUAL RESIDENCE AFTER DUNMORE 2025 SCC 20

Step 1 Identify the 'Prescribed Time'	Under s.22(2), the court looks to the last time the child resided with BOTH parents together. This is the reference point for determining habitual residence. In Dunmore, the prescribed time was May 30, 2021, when the family separated in Ontario.
Step 2 Apply the 'At Home' Test	At the prescribed time, where was the child 'at home'? This is a contextual, fact-based inquiry that considers all circumstances: Where was the family actually living? (physical presence); What were the family's connections to the location (school, healthcare, social ties)? Was the stay more than merely visiting or sojourning? (must be more than a temporary presence). Parental intention is RELEVANT but not determinative — it is one factor among many, not the sole test.
Step 3 Alternative Ground — s.22(1)(b)	Even if habitual residence cannot be established, a court may take jurisdiction under s.22(1)(b) if it is the most appropriate forum — considering factors including: the child's connections to Ontario, the balance of convenience, and whether another court has taken jurisdiction over the child. This alternative is an important safety valve.
Step 4 Unilateral Removal — S.22(3)	Under s.22(3), a child's habitual residence is NOT altered by the UNILATERAL removal or withholding of the child by one parent without the consent of the other. A parent cannot 'create' habitual residence in a new jurisdiction by abducting or wrongfully retaining the child there.

Office of the Children's Lawyer v Balev [2018] 1 SCR 398

The SCC adopted the 'hybrid approach' for determining habitual residence under the HAGUE CONVENTION on international child abduction (which has no statutory definition of habitual residence). Under the Hague Convention, courts consider all circumstances relevant to the child's life — including parental intention — to determine where the child is habitually resident. Dunmore clarified that the CLRA (which has a statutory definition) uses the 'at home' test (child-centred, contextual), while the Hague Convention uses the Balev hybrid approach.

⚠ EXAM TIP — DUNMORE IS THE DOMINANT JURISDICTION CASE FOR 2026

Dunmore v Mehralian 2025 SCC 20 was decided June 20, 2025, reasons delivered after the April 2025 exam, and is specifically listed in the January 2026 syllabus revision. It WILL be tested. Know: (1) the 'at home' test for CLRA s.22 habitual residence; (2) parental intention is relevant but not determinative; (3) the prescribed time is when both parents last lived together with the child; (4) unilateral removal (s.22(3)) does not change habitual residence.

Chapter 6: Emotional Dynamics, ADR, and Family Violence

6.1 Alternative Dispute Resolution in Family Law

The Divorce Act and Ontario legislation actively encourage ADR as an alternative to litigation. All of these processes are specifically listed on the Family Law syllabus and the sample exam tested ADR in Q2(B).

ADR PROCESS	STATUTORY BASIS AND KEY FEATURES
MEDIATION (Most commonly tested)	Divorce Act s.7 (imposes duty on counsel to discuss mediation); FLA s.3 (court may refer matters to mediation); CLRA s.31 (court may appoint mediator). A mediator assists parties in reaching their OWN agreement — the mediator does not impose a solution. The agreement reached must be memorialized in a domestic contract (separation agreement) to be enforceable. Key case: Association de médiation familiale du Québec v Bouvier, 2021 SCC 54: Family mediation communications are protected by a PRIVILEGE — neither party can introduce into court proceedings the specific information disclosed during family mediation. This protects the frank exchange necessary for effective mediation.
ARBITRATION	Divorce Act ss.7-7.7(3) (recently amended to require procedural safeguards in family arbitration). An arbitrator acts like a private judge — they hear evidence and make a binding decision called an arbitral award. Family arbitration awards are enforceable as court orders if they comply with the procedural requirements of the Ontario Arbitration Act and family law legislation. Key safeguards (post-2006 reforms): (1) Parties must receive independent legal advice before signing an arbitration agreement; (2) The arbitrator must be a lawyer or former judge; (3) Parties can appeal on questions of law; (4) Arbitration agreements that conflict with family legislation are unenforceable.
COLLABORATIVE LAW	Not governed by specific statute but increasingly recognized in family law practice. Parties each retain collaborative lawyers who agree (in a participation agreement) not to take the matter to court. All negotiations occur in four-way meetings. If the collaborative process fails, the collaborative lawyers must withdraw and new litigation lawyers must be retained — creating a powerful incentive to settle.
PARENTING ASSESSMENTS (Assessment/Custody Report)	CLRA s.30: Court may appoint an assessor (usually a psychologist, social worker, or psychiatrist) to assess and report on the needs of the child and the ability of the parents to meet those needs. The assessment report is filed with the court and carries significant weight in parenting proceedings.
DUTY TO DISCUSS ADR (Lawyers' Obligations)	Divorce Act s.7.7(1): Every counsel acting in a divorce proceeding has a duty to discuss with their client the advisability of negotiating matters, the possibility of reconciliation, and the availability of mediation services and other dispute resolution options.

**Association de médiation
familiale du Québec v
Bouvier, 2021 SCC 54**

Family mediation communications are protected by a recognized privilege in Quebec (and the principle extends across Canada). Information disclosed during family mediation cannot be used in subsequent litigation by either party. This privilege protects the frank exchange necessary for effective mediation and encourages parties to disclose information they might otherwise withhold. The mediator cannot be compelled to testify. This privilege is broader than solicitor-client privilege — it protects disclosures to a neutral third party.

6.2 Family Violence — Coercive Control

Family violence is a mandatory consideration in all parenting proceedings under the Divorce Act. The 2019 amendments to the Divorce Act (in force March 1, 2021) explicitly added family violence as a factor in the best interests analysis (s.16(3)(j)) and directed courts to consider the impact of family violence on the children's needs and the ability of each parent to meet those needs.

Definition of Family Violence Under the Divorce Act

Section 2(1) of the Divorce Act (as amended) defines 'family violence' broadly to include:

- Physical abuse (assault, forcible confinement)
- Sexual abuse (any form of sexual assault or sexual exploitation)
- Psychological abuse (intimidation, threats, isolation, humiliation)
- Financial abuse (controlling access to money, economic resources)
- Harassment and stalking
- Killing or harming animals or property — threats against pets are a recognized form of coercive control
- Coercive control — a pattern of behaviour designed to control, manipulate, isolate, or intimidate the other spouse (the most significant addition in the 2019 amendments)

Coercive Control — The Academic Framework (Required Reading)

The syllabus specifically lists two academic articles on coercive control that students must understand:

- Nonomura et al., 'Coercive Control' (2021): Coercive control is a pattern of behaviour — not a single incident — that functions to control, dominate, and isolate a victim. It may not involve physical violence at all. The pattern includes monitoring, isolation from family and friends, economic control, emotional manipulation, and threats. Coercive control is particularly dangerous in post-separation contexts where the abuser loses direct access to the victim.
- Katz, Nikupeteri & Laitinen, 'When Coercive Control Continues to Harm Children: Post-Separation Fathering, Stalking and Domestic Violence' (2020): Separation does not end coercive control — it may intensify as the abuser loses control of the victim. Post-separation coercive control harms children directly (who witness or experience it) and indirectly (by undermining the safe parent's ability to parent effectively). Courts must recognize that children's wellbeing is directly harmed by post-separation coercive control, not just by its effects on the victimized parent.

Impact on Parenting Orders

- Under Divorce Act s.16(3)(j): Courts MUST consider any family violence and its impact on the child, and the ability and willingness of any person who engaged in family violence to care for and meet the child's needs.
- Under s.16(4): Where family violence is established, courts must take it into account in making parenting orders — prioritizing the safety, security, and wellbeing of the child above the principle of maximum contact with both parents.
- A history of coercive control is a significant factor weighing against the abusive parent having unsupervised parenting time or decision-making responsibility.

- Courts may order supervision conditions, exchanges at neutral locations, no-contact orders, and other protective measures.

⚠ **EXAM TIP — FAMILY VIOLENCE IN PARENTING QUESTIONS**

When any fact pattern mentions: controlling behaviour, financial control, isolation of a spouse, threats, post-separation harassment, or physical violence — flag family violence / coercive control under Divorce Act s.16(3)(j). Cite the specific provision. Discuss the post-separation continuation of coercive control (Katz et al.). State that safety, security and wellbeing of the child is the overriding concern under s.16(4). Addressing family violence is now mandatory in a complete parenting analysis.

Chapter 6A: Interim Support Orders

Interim support orders are a separate and important category of order under both the Divorce Act and the FLA. They provide temporary financial relief while final orders are determined. The rules governing interim orders differ from final orders in important ways.

6A.1 Interim Child Support (Divorce Act s.15.1(2))

Under Divorce Act s.15.1(2), a court may make an interim child support order pending the determination of a final child support order. The same principles apply as for final orders (Federal Child Support Guidelines), but interim applications move faster and with less evidence.

- At the interim stage, courts typically apply the CSG table amounts without extensive analysis — parties produce their most recent income documentation and the table amount follows.
- The interim table amount is presumptively correct — departures require specific justification at the interim stage.
- Interim orders may be made on affidavit evidence without a full hearing.

6A.2 Interim Spousal Support (Divorce Act s.15.2(2))

Under Divorce Act s.15.2(2), a court may make an interim spousal support order pending the determination of the final order. Interim spousal support is one of the most litigated areas in family law — the SSAG ranges are the primary tool.

Enyedy-Goldner v Goldner, 2024 ONSC 1755

Added to the January 2026 syllabus specifically. The ONSC addressed an interim spousal support application in a case involving significant income disparity and a lengthy marriage. The court confirmed that the SSAG ranges provide reliable guidance at the interim stage. Courts should: (1) accept the parties' disclosed incomes at face value for interim purposes unless obviously incorrect; (2) apply the appropriate SSAG formula (with-child or without-child) to produce a range; (3) determine where within the range the interim order should fall based on preliminary assessment of the compensatory and non-compensatory factors; (4) be cautious about making orders at the upper end of the range at the interim stage, as interim orders are difficult to retroactively adjust.

The Yardstick Approach for Interim Spousal Support

At the interim stage, courts use a practical 'yardstick' approach:

13. Calculate the SSAG range using the parties' most recently verified incomes.
14. Assess the strength of entitlement (is compensatory support clearly warranted? Is there an obvious income gap creating need?).
15. Consider each party's immediate household expenses and cash flow needs.
16. Place the interim amount within the SSAG range — typically in the middle of the range at the interim stage to preserve judicial flexibility at the final stage.

Interim Orders vs Final Orders — Key Differences

ASPECT	INTERIM ORDER	FINAL ORDER
Evidentiary basis	Affidavit evidence; quick turnaround	Full disclosure; financial statements; trial or settlement
Duration	Until final order is made	Fixed term or indefinite
Quantum determination	SSAG range, preliminary assessment	Full Moge/Bracklow/Miglin analysis, full SSAG
Retroactivity	Begins on date of application (or earlier)	Can be retroactive to date of application or earlier
Variation threshold	Material change; but interim orders are temporary	Material change in circumstances (LMP v LS)

6A.3 Interim Parenting Orders (Divorce Act s.16.1(5))

Courts may make interim parenting orders pending the final resolution of parenting disputes. Key principles:

- The BEST INTERESTS OF THE CHILD standard applies equally to interim parenting orders — there is no different or lower threshold.
- Status quo is important at the interim stage: courts are generally reluctant to make dramatic changes to established parenting arrangements before a full hearing because disruption to the child's routine itself causes harm.
- Urgent applications (e.g., where a parent is about to flee the jurisdiction with the child, or where a child is at immediate risk) can be heard ex parte (without notice to the other party) — but the court will require evidence of urgency.
- An interim parenting order does not create a presumption in favour of the parent who obtains it — but the status quo established by an interim order will be a relevant factor at the final hearing.

Chapter 6B: Provincial Support Obligations — Family Law Act Part III

Part III of the Family Law Act (ss.30-38) establishes support obligations between spouses outside of divorce proceedings. This regime applies to married spouses who are separated but not divorcing, and to cohabiting spouses who meet the FLA's definition of 'spouse' for support purposes. It is specifically listed on the syllabus and frequently appears as part of multi-issue exam questions.

6B.1 Who Has Support Obligations Under the FLA?

SECTION	OBLIGATION
s.30 — Obligation of Spouses	Every spouse has an obligation to provide support for themselves and for the other spouse, in accordance with need, to the extent that they are capable of doing so.
s.31 — Obligation of Parent	Every parent has an obligation to provide support for his or her unmarried child who is a minor, in accordance with need.
s.32 — Obligation of Child	Every child who is not a minor has an obligation to provide support, in accordance with need, to his or her parent who has cared for or provided support for the child.

6B.2 Definitions Under FLA Part III

For support purposes (ss.29-33 FLA), 'spouse' includes:

- Any two persons who are married to each other.
- Two persons who are NOT married to each other but have COHABITED CONTINUOUSLY FOR NOT LESS THAN THREE YEARS.
- Two persons who are NOT married to each other but have cohabited in a relationship of some permanence and are the natural or adoptive parents of a child together.

IMPORTANT: This definition of 'spouse' for support purposes (s.29) is BROADER than the definition of 'spouse' for property purposes in Part I of the FLA. Under Part I (s.1(1)), 'spouse' means only MARRIED persons. Under Part III (s.29), 'spouse' includes qualifying cohabitants.

6B.3 Section 33 — Criteria for Support Orders (FLA)

Under s.33 of the FLA, the court considers the following criteria in making a support order — these differ from the Divorce Act objectives and candidates must know both:

FLA s.33(9) CRITERIA	CONTENT
(a) Current assets and means	What each party currently owns and earns.
(b) Accustomed standard of living	The standard of living established during the cohabitation/marriage — support should allow both parties to maintain a reasonable standard of living.
(c) Capacity to become self-supporting	The supported spouse's realistic prospects for self-sufficiency and what is required to achieve it.
(d) Duration of cohabitation/marriage	Longer relationships generally produce stronger support entitlement.
(e) Need of the child	The needs of children affect both the supported spouse's needs and available resources for support.
(f) Age and health	Age and health conditions affecting earning capacity or need.
(g) Contributions to career development	Where one spouse's career developed at the expense of the other's role in the family.
(h) Disruption of career	Career disruption due to marital responsibilities — domestic labour,

	child care, supporting the other's career.
(i) Contribution to property	Contributions to the acquisition, improvement, or maintenance of property.
(j) Dependent obligations	Other persons each party has an obligation to support.

FLA Support vs Divorce Act Support — Key Differences

DIMENSION	FLA (s.33)	DIVORCE ACT (s.15.2)
Who can claim	Married spouses AND cohabiting spouses (meeting s.29 definition)	Married spouses only (on divorce)
Framework	Needs-based criteria in s.33(9)	Four objectives in s.15.2(6): compensatory, financial consequences of child care, hardship relief, self-sufficiency
Do the SSAG apply?	Yes, by analogy and practice — courts use the SSAG as a practical tool under the FLA as well	Yes, as persuasive guidelines
Relationship to Miglin	Domestic contracts under the FLA are governed by ss.56-57 FLA — the court does not apply Miglin directly, though similar principles of fairness at contracting apply	Miglin applies directly to spousal support provisions in domestic contracts under the Divorce Act

6B.4 Child Support Under the FLA (ss.31, 33)

The FLA imposes its own child support obligation on parents of minor children — parallel to but distinct from the obligation under the Divorce Act and the Federal Child Support Guidelines. However, in practice:

- The Ontario Child Support Guidelines (Ont. Reg. 391/97) apply to child support orders made under the FLA and the CLRA — they use the SAME TABLE AMOUNTS as the Federal Child Support Guidelines.
- The analytical framework (table amounts, s.7 expenses, multiple obligors, shared parenting) is the same under the provincial guidelines as under the federal guidelines.
- Where parties are not proceeding under the Divorce Act, the child support order is made under the FLA or CLRA, and the Ontario Child Support Guidelines govern.

⚠ EXAM TIP — FLA SUPPORT EXAM TIP

When a question involves unmarried cohabitants or married spouses who are separated but not divorcing, the FLA (not the Divorce Act) provides the support framework. The Divorce Act only applies when the parties are actually seeking a divorce. Cite FLA s.33 for the criteria — not the Divorce Act s.15.2(6) objectives. Both frameworks produce similar outcomes in practice, but citing the wrong statute costs marks.

PART III

CHILD SUPPORT — FEDERAL GUIDELINES AND PROVINCIAL RULES

Chapter 7: Child Support — The Federal Child Support Guidelines

Child support is among the most consistently tested topics on the NCA Family Law exam and requires both legal analysis AND numerical calculation. Master the structure of the Guidelines and the exceptions — the sample exam Q3 tested multiple-obligor situations, the s.7 expense analysis, and the high-income exception in a single question.

7.1 Legal Foundation

- Federal Child Support Guidelines (CSG), SOR/97-175 (as amended): Enacted under Divorce Act s.26.1. Apply to all child support orders under the Divorce Act.
- Ontario Child Support Guidelines (Ont. Reg. 391/97): Apply to child support under the FLA (married spouses not proceeding under Divorce Act) and CLRA (unmarried parents). Use the SAME TABLE AMOUNTS as the federal guidelines.
- Auer v Auer, 2024 SCC 36: The SCC unanimously upheld the validity of the Federal Child Support Guidelines. The challenge that the Guidelines were ultra vires the Governor in Council under the Divorce Act was rejected. The Guidelines continue to be the mandatory framework for child support in divorce proceedings. The SCC also clarified the foundational principles: children should benefit from both parents' income; child support should reflect the child's pre-separation standard of living; amounts vary based on the payor's income.

7.2 The Basic Table Amount — Section 3

Section 3(1) of the CSG provides that the amount of child support is the amount set out in the applicable table for the province in which the payor parent lives, based on the payor parent's income and the number of children. This is the STARTING POINT for every child support analysis.

⚠ EXAM TIP — PAYOR PARENT IS THE KEY REFERENCE

The table amount is based on the income of the PAYOR parent — the parent who pays child support (the one who does not primarily reside with the children). The income of the RECIPIENT parent is generally NOT used to determine the basic table amount (though it may be relevant for s.7 expenses and undue hardship). This is a frequently tested point.

7.3 Who Has Standing to Claim Child Support?

The right to claim child support exists for:

- A 'child of the marriage' (Divorce Act s.15.1) — a child who (a) is under the age of majority AND has not withdrawn from parental charge; OR (b) is of or over the age of majority but unable to withdraw from parental charge due to illness, disability, or other cause (e.g., post-secondary education).
- The claim may be made by: the spouse with whom the child primarily resides; the child themselves (if of sufficient age); a government agency that has provided support to the child.

7.4 Who Has the Obligation to Pay? — Charter: Standing in the Place of a Parent

Chartier v Chartier [1999] 1 SCR 242

The obligation to pay child support is not limited to biological or adoptive parents. Under Divorce Act s.2(2), a 'child of the marriage' includes a child of both spouses OR a child of one spouse for whom the OTHER SPOUSE 'stands in the place of a parent.' A person stands in the place of a parent when they have ESTABLISHED A PARENT-LIKE RELATIONSHIP with the child — treating the child as their own. Key factors: day-to-day care and upbringing, financial responsibility, the child's perception of the relationship, and the intention to 'parent' the child. CRITICAL: Once a person has stood in the place of a parent, they CANNOT unilaterally withdraw from that role. The obligation to support the child continues even after separation.

Application of Chartier on the sample exam (Q3A): Cesare cohabited with Lucretia for 7 years and treated her two children as his own — clearly stood in the place of a parent. After separation, he 'decided he will have nothing more to do with the children.' Under Chartier, he CANNOT simply decide to stop being a parent. He remains liable for child support.

7.5 Multiple Obligors — When Two Parents (or Step-Parents) Owe Support

Where more than one person has a child support obligation (e.g., the biological father AND a step-parent who stood in the place of a parent), the court must apportion the total obligation. This was directly tested in the sample exam Q3A.

MULTIPLE OBLIGORS — ANALYTICAL FRAMEWORK

Step 1 Establish Standing	Determine who has the obligation to pay. Both the biological father (Ghengis) and the step-parent (Cesare) have obligations — Ghengis as biological parent; Cesare as step-parent who stood in the place of a parent (Chartier). The oral agreement that Ghengis would pay nothing is not binding — s.15.1(7) of the Divorce Act provides that a domestic agreement respecting child support does not preclude the court from making a child support order.
Step 2 Determine Total Need	Calculate the total table amount for the children from each obligor's income separately: Ghengis's table amount based on his income + Cesare's table amount based on his income. This gives the maximum total obligation.
Step 3 Apportionment — Wright v Zaver	Courts do NOT simply add the two table amounts together (double recovery is not permitted). Instead, courts apportion the obligation using the CSG guidelines — considering each obligor's income, the length of their relationship with the child, and the child's needs. The court has discretion in apportionment.
Step 4 Reduction for Step-Parent's Obligation	The court typically reduces the step-parent's obligation to reflect the existence of the biological parent's obligation (CSG s.5 — where a spouse against whom a child support order is sought stands in place of a parent, the court can set an amount different from the table amount as appropriate, having regard to the Guidelines and the other person's legal duty to support the child).

Wright v Zaver [2002] OJ No. 1098 (ONCA)

Where both a biological parent and a step-parent owe child support, the court must apportion the obligation to avoid double recovery. The court has considerable discretion in determining each obligor's share. The approach is to consider both obligors' incomes and their respective relationships with the child to arrive at a fair apportionment — the

	biological parent's obligation is typically the primary obligation; the step-parent's obligation supplements it.
Drygala v Pauli [2002] ONCA	A step-parent who stood in the place of a parent was found liable for child support despite the existence of a biological father who also had an obligation. The step-parent's obligation reflects the relationship established with the child, not simply biological connection. The step-parent cannot use the existence of a biological parent's obligation to eliminate their own — though it is relevant to quantification.

7.6 Section 4 — High Income Payor (Income over \$150,000)

Where the payor parent's annual income exceeds \$150,000, the court has discretion to depart from the table amount for the portion above \$150,000. This was tested in sample exam Q3B.

CSG SECTION 4 — HIGH INCOME ANALYSIS	
Step 1 Calculate the Basic Table Amount	Calculate the table amount for \$150,000 income — this is the MINIMUM the payor must pay regardless of their actual income.
Step 2 Apply s.4(b) Discretion for Income Above \$150,000	For the portion above \$150,000, the court may: (a) apply the applicable table amount for the full income; OR (b) order a different amount having regard to the condition, means, needs and other circumstances of the child and the financial ability of each parent to contribute. The court is NOT required to apply the full table amount above \$150,000 — it has discretion to order more or less than the table amount for the excess income portion.
Step 3 High-Income Discretion Factors	Courts consider: the standard of living the children would have enjoyed if the parents had remained together; the needs of the child; what is 'fair' having regard to the incomes of both parents. The table amounts at very high incomes can produce very large support orders — courts have discretion to moderate this where appropriate, but must still ensure children benefit from the payor's high income (Francis v Baker [1999] 3 SCR 250).

Francis v Baker [1999] 3 SCR 250	Where the payor parent earns over \$150,000, the table amount provides the FLOOR — not necessarily the appropriate amount. Courts have discretion to award more or less than the table amount for income above \$150,000. The focus is on ensuring children benefit from the payor parent's income while avoiding windfalls. The higher the income, the more the court will examine actual need rather than simply applying a mechanical calculation.
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High Income Example — Sample Exam Q3B

Zeus earns \$950,000 → table amount at \$150,000 = X; court has discretion for the remaining \$800,000. The stated table amount of \$11,272/month is for the full \$950,000 income. Court must consider s.4(b) and the children's actual needs, the trust income (\$5,000/year each), and Leda's income (\$200,000). The court is not required to award the full \$11,272 but must ensure the children benefit from Zeus's high income.

7.7 Section 7 — Special or Extraordinary Expenses

In addition to the basic table amount under s.3, the court may order a contribution to specific expenses that are necessary in light of the child's best interests under CSG s.7. These expenses are **SHARED** between the parents in proportion to their incomes.

SECTION 7 EXPENSE TYPE	CONDITIONS FOR INCLUSION
s.7(1)(a) — Child care expenses	Arising from employment, illness, disability, or education/training of the spouse with whom the child resides. Day care, after-school care, babysitter costs.
s.7(1)(b) — Medical/Dental insurance premium	The portion attributable to the child's share of any medical/dental insurance premium paid by a parent.
s.7(1)(c) — Health-care expenses	Not covered by insurance and exceed \$100/year annually: orthodontics, therapy, eyeglasses, prescription medication.
s.7(1)(d) — Extraordinary extracurricular activities	Activities that are extraordinary, having regard to the abilities of the child, the level of the child's commitment, and the family's lifestyle before separation. Routine hockey registration is not extraordinary; elite competitive training with significant coaching fees may be.
s.7(1)(e) — Post-secondary education expenses	Tuition, books, room and board for post-secondary education. Courts consider the child's assets, income, and ability to contribute (student loans, part-time work).
s.7(1)(f) — Primary or secondary school expenses	Private school costs — ONLY if the expense is extraordinary and reasonable. The test: taking into account both parents' income and the nature of the expense, is it reasonable and extraordinary?

How s.7 Expenses Are Calculated

Section 7(2): The amount of the contribution by each parent is determined by reference to what is reasonable, having regard to each parent's means. In practice:

17. Determine the gross annual cost of the s.7 expense.
18. Deduct any amounts actually paid by government subsidies, tax credits, or other sources.
19. The NET cost is shared between the parents IN PROPORTION TO THEIR RESPECTIVE INCOMES (not 50/50 split — proportional to income).

Example: Private school costs \$20,000/year per child (two children = \$40,000). Zeus income \$950,000 / Leda income \$200,000 → combined income \$1,150,000. Zeus's share = $\$950,000 / \$1,150,000 = 82.6\% \times \$40,000 = \$33,040/\text{year}$. Leda's share = $17.4\% \times \$40,000 = \$6,960/\text{year}$.

7.8 Section 9 — Shared Parenting (40% Parenting Time Threshold)

Where a parent exercises parenting time with a child for not less than 40% of the time over the course of a year, s.9 of the CSG applies and the court may depart from the basic table amount.

Contino v Leonelli-Contino [2005] 3 SCR 217

The definitive SCC case on shared parenting and child support. When s.9 applies (40%+ parenting time), the court conducts a **THREE-PART ANALYSIS**: (1) Set-off the two parents' table amounts against each other; (2) Examine the increased costs of shared parenting; (3) Consider the conditions, means, needs and other circumstances of each spouse and the children. The set-off (step 1) is the **STARTING POINT**, not the end point — courts must go further and assess the

actual costs of the arrangement to ensure fairness. Rigid mechanical application of the set-off alone is an error.

7.9 Section 10 — Undue Hardship

A payor or recipient parent may apply to vary the table amount on the ground of 'undue hardship' under s.10 CSG. This is a difficult threshold to meet — it requires genuine, serious hardship, not mere inconvenience.

GROUND FOR UNDUE HARDSHIP (s.10(2))	EXAMPLE
Unusually high debts reasonably incurred to support the family before separation	Mortgage debt taken on to maintain the family home during the marriage that now burdens the payor parent disproportionately.
Legal duties to support other dependants	The payor has a legal obligation to support children from a prior relationship or to care for an elderly parent.
Legal duties to support a child from another relationship	The payor pays child support for children from a previous relationship, reducing their available income.
Exceptional expenses for exercising parenting time	Extraordinary travel costs to maintain a relationship with the child (e.g., international travel).

IMPORTANT: Even if undue hardship grounds are established, the payor must also demonstrate that their standard of living is LOWER than the recipient's household standard of living — under the household standard of living test in the CSG. If the payor's standard of living is equal to or higher than the recipient's, undue hardship will not be found.

7.10 Retroactive Child Support

Courts may award retroactive child support to address a failure by the payor to disclose income increases or to pay the appropriate amount in the past. Two leading SCC cases govern:

Michel v Graydon, 2020 SCC 24	Retroactive child support may be ordered even after children have reached the age of majority. The SCC confirmed that the right to child support does not simply extinguish when the child turns 18. Where support was inadequate due to the payor's failure to disclose income, the court may order retroactive support going back as far as the date of the request (or date of effective notice), subject to considerations of hardship, delay, and the payor's conduct.
Colucci v Colucci, 2021 SCC 24	The definitive SCC framework for retroactive child support applications. Key principles: (1) The starting point is the date of the FIRST NOTICE or effective request for increased support — courts should generally order retroactive support from that date; (2) Going back more than three years before the date of notice requires special justification; (3) Courts consider: the payor's conduct (deliberate evasion of disclosure vs innocent failure), the reason for the delay in seeking support, the hardship that retroactive payment would cause, and the impact on the child; (4) Payor parents have an ongoing, positive obligation to disclose income increases to the recipient parent without being asked.

7.11 Variation of Child Support Orders

Child support orders may be varied under Divorce Act s.17 where there has been a CHANGE IN CIRCUMSTANCES. For child support, the Federal Child Support Guidelines provide specific guidance on what constitutes a change in circumstances (CSG s.14):

- Change in either parent's income of at least 10% since the order was made.
- A change in the child's needs or circumstances (e.g., reaching the age of majority, beginning post-secondary education, developing a disability).
- A change in the number of children entitled to support.
- A change that would result in a variation of the order by more than the lesser of \$100/month or 10% of the existing order.

The material change in circumstances test does NOT apply to child support the way it does to spousal support — changes in income trigger an automatic obligation to review child support even without a formal variation application.

Chapter 7A: Child Support for Adult and Post-Secondary Children

The obligation to pay child support does not automatically end when a child turns 18. A child who is 'unable to withdraw from parental charge' due to education, disability, or other cause remains a 'child of the marriage' entitled to support. This is a consistently examined topic.

7A.1 Children Unable to Withdraw from Parental Charge

Under Divorce Act s.2(1), a 'child of the marriage' includes a child who is of or over the age of majority who is 'unable to withdraw from their charge or to obtain the necessities of life' because of:

- **ILLNESS or DISABILITY** — a child with a serious health condition or disability that prevents them from being self-sufficient. This is straightforward: chronic illness, developmental disability, or mental health conditions may qualify.
- **OTHER CAUSE** — most commonly interpreted to include post-secondary education. A child who is pursuing university or college education full-time is generally considered unable to withdraw from parental charge — they are economically dependent while investing in their future earning capacity.

Post-Secondary Education — The Key Factors

Whether a post-secondary student qualifies as a child of the marriage requires a contextual analysis. Courts consider:

- The child's academic progress and commitment — is this a serious, ongoing educational program or is the child drifting between programs?
- The child's financial ability to contribute to their own support — assets, part-time employment income, student loans, OSAP, scholarships.
- The standard of living the child would have had if the family had remained together — would the parents have funded post-secondary education had they remained together?
- Whether the child is living away from home while in school — this affects the quantum of support needed.

Peters v Atchooay, 2022 ABCA 347

Added to the 2026 syllabus. The Alberta Court of Appeal examined child support for an adult child pursuing post-secondary education. The court confirmed that the s.3(2)(b) CSG analysis applies: where a child is over the age of majority, the court may apply the table amounts as a

	starting point and then make any appropriate adjustments having regard to the condition, means, needs and circumstances of the child and the parents. The child's own assets and income are a relevant consideration — a student with substantial RRSP savings or significant employment income may not be 'unable to withdraw from parental charge' in the same way as a student with no assets.
Kowalewich v Kowalewich, 2001 BCCA 450	Added to the 2026 syllabus. The BCCA addressed the obligation to pay child support for a child attending university. Established that a university student is generally a child of the marriage during the period of full-time studies. However, the court may consider the child's own financial resources (savings, part-time income, scholarships) in determining the appropriate amount under s.3(2)(b) of the CSG. The child's personal assets do not eliminate the parental obligation but reduce it proportionally.

7A.2 CSG Section 3(2)(b) — Adult Children Over the Age of Majority

For children over the age of majority who are children of the marriage, s.3(2)(b) of the CSG provides the analytical framework:

20. The court may apply the table amounts as if the child were under the age of majority — this is the starting point.
21. The court then considers whether any adjustment is appropriate having regard to the condition, means, needs and other circumstances of the child and the financial ability of each parent to contribute.
22. In practice, courts OFTEN reduce the table amount for an adult post-secondary student to reflect: (a) the child's own income and assets; (b) whether the child lives at home or away; (c) the total costs of education (tuition, books, residence) treated as a s.7-type analysis rather than a pure table amount.

7A.3 The Section 3(2)(b) Analysis for University Students — Worked Example

Payor earns \$80,000 per year. Adult child attends university full-time, earns \$6,000/year from part-time work, has \$15,000 in an RESP account. The child lives on-campus during the school year.

23. STEP 1 — Is the child a 'child of the marriage'? Yes — university student unable to withdraw from parental charge.
24. STEP 2 — Apply table amount as starting point: Table amount for one child at \$80,000 income ≈ \$713/month.
25. STEP 3 — Adjust under s.3(2)(b): The child earns \$6,000/year (\$500/month) from part-time work, has RESP assets, and the educational costs are the primary need. Court may treat this as a s.7-type analysis of actual educational costs plus living expenses, reduced by the child's own contributions.
26. STEP 4 — The court typically considers: annual tuition (\$8,000) + books (\$1,500) + residence (\$10,000) = \$19,500/year total. Less child's own contribution from work and RESP = \$12,000/year. Parents' share = \$7,500/year apportioned proportionally to their incomes.

⚠ EXAM TIP — ADULT CHILD SUPPORT — THE EXAM APPROACH

When a fact pattern mentions an 18-22 year old child attending college or university: (1) Establish they are still a 'child of the marriage' — post-secondary education qualifies under 'other cause'; (2) Note that s.3(2)(b) CSG applies — table amount is the starting point but adjustment is appropriate; (3) Consider the child's own resources (student loans, part-time income, RESP); (4) Address as a combined table amount + s.7-style analysis. Cite *Peters v Atchooay* 2022 ABCA 347 and *Kowalewich* 2001 BCCA 450.

Chapter 7B: Imputation of Income for Child Support Purposes

One of the most litigated issues in child support is the imputation of income to a parent who is earning less than they are capable of earning — whether through underemployment, unemployment, unreported income, or deliberate reduction of income to avoid support. The CSG specifically addresses this.

7B.1 Section 19 CSG — Imputation of Income

Section 19(1) of the CSG allows the court to impute such income to a parent as it considers appropriate in the circumstances, which circumstances include:

GROUND FOR IMPUTATION (CSG s.19(1))	DETAILS AND CASES
(a) Intentionally under-employed or unemployed (not for children's care)	Where a parent voluntarily leaves employment, reduces their hours, or takes a lower-paying position without adequate reason — not for child care purposes — the court may impute their former income or their earning capacity income. The court asks: what income could this parent reasonably be earning given their education, experience, and the available job market?
(b) Benefits derived from employment	Where a parent receives significant employment benefits (company car, housing, expense accounts) that reduce their personal expenses, these may be included in imputed income.
(c) Non-arm's length income manipulation	Where a parent who controls a corporation pays themselves a salary below their actual ability to pay — e.g., paying \$50,000/year from a business generating \$200,000 — the court may impute income based on the business's actual earnings available to the parent.
(d) Income tax avoidance	Where a parent structures their affairs to minimize taxable income (income splitting, excess business deductions) in a way that reduces their support obligation, income is imputed to reflect their true economic position.
(g) Failure to income-produce from property	Where a parent holds significant assets that generate no income but could reasonably be expected to generate income if invested or sold, income may be imputed.

Drygala v Pauli, 2002 ONCA

Added to the 2026 syllabus. The ONCA confirmed the court's broad discretion under CSG s.19 to impute income. The threshold question is whether the parent is intentionally under-employed or unemployed. 'Intentionally' does not require bad faith or malice — it means voluntary, without adequate justification. A parent who voluntarily leaves a well-paying job to pursue a lower-paying passion project without adequate reason for the change (other than personal preference) may have income imputed at their former earnings level. The court considers: the age, health, and education of the parent; the available jobs in the market; and what constitutes a reasonable career choice.

Imputation to Corporate Owners — The Pre-Tax Income Rule

Where a parent owns and controls a corporation, the court may impute income based on the corporation's PRE-TAX income available to the payor. The approach:

27. Determine the corporation's total available income — gross revenues minus genuine business expenses.
28. Apply a notional management salary the payor could reasonably pay themselves.
29. Consider dividends and other distributions from the corporation as income.
30. Do NOT allow a payor to hide corporate income by re-investing it or paying family members inflated 'salaries' — related-party transactions are scrutinized.

Imputation in the Context of Career Change

A parent who changes careers for legitimate reasons (education, health, caring for an elderly parent) may have income imputed at their former level for a transition period — but not indefinitely. Courts balance:

- The right of individuals to make career choices vs the obligation to support children.
- Reasonable transition periods are allowed — but a parent cannot simply declare they will earn less and thereby reduce support for years.
- The obligation is to earn at a REASONABLE LEVEL given the parent's qualifications — not necessarily the maximum possible income.

PART IV

SPOUSAL SUPPORT — ENTITLEMENT, QUANTUM, AND VARIATION

Chapter 8: Spousal Support

Spousal support is one of the most analytically complex topics in Canadian family law — it combines statutory provisions, multi-factorial case law analysis, and the practical tool of the Spousal Support Advisory Guidelines (SSAG). The exam regularly tests both the entitlement analysis and quantum. The key is to work through the analysis in the correct order: entitlement first, then quantum.

8.1 Statutory Basis for Spousal Support

STATUTORY PROVISION	SCOPE AND APPLICATION
Divorce Act s.15.2 (support order on divorce)	A court may make an order requiring a spouse to pay support for the other spouse. Applies when the parties are divorcing or when corollary relief is sought in divorce proceedings. The court considers the four objectives in s.15.2(6) and the factors in s.15.2(4).
Divorce Act s.15.3 (priority of child support)	Where a court is considering both child support and spousal support, child support takes PRIORITY. If there are insufficient resources to pay both, the child support order comes first and the spousal support order is adjusted accordingly.

**Family Law Act ss.30-33
(provincial support
obligation)**

A married spouse has an obligation of support under the FLA outside of divorce proceedings. The criteria under s.33 of the FLA differ from those under the Divorce Act — the FLA is primarily needs-based. Cohabitants may also claim support under the FLA if they meet the 3-year or child threshold (s.29).

8.2 Step 1 — Entitlement: The Three Bases

Before considering quantum (how much support and for how long), a court must first determine ENTITLEMENT. There are three recognized bases for spousal support entitlement in Canadian law, derived from leading SCC cases:

THREE BASES FOR SPOUSAL SUPPORT ENTITLEMENT	
BASIS 1 COMPENSATORY (Moge 1992)	Compensatory support addresses the ECONOMIC ADVANTAGES AND DISADVANTAGES that arise from the marriage and its breakdown. A spouse who has sacrificed career advancement, educational opportunities, or earning capacity to fulfil marital roles (homemaking, child-rearing, supporting the other's career) is entitled to compensation for that economic sacrifice. Key principle from Moge: Support is not charity — it is compensation for real and documentable economic disadvantage caused by the marriage. The longer the marriage, the greater the entitlement to compensatory support. A spouse who withdrew from the workforce for 20 years to raise children is severely economically disadvantaged and entitled to substantial compensatory support. Factors: Length of marriage, degree of role differentiation (did one spouse give up career to care for family?), current income disparity, the spouse's employment prospects.
BASIS 2 NON-COMPENSATORY (Bracklow 1999)	Non-compensatory support addresses the NEEDS of the dependent spouse that exist even where the marriage did not cause any specific economic disadvantage. Even where a marriage was short and the parties were economically equal, one spouse may be entitled to support based purely on NEED arising from illness, disability, or other causes. Key principle from Bracklow: The marriage creates a relationship of mutual obligation. Where one spouse cannot be economically self-sufficient regardless of any disadvantage caused by the marriage, the other spouse has an obligation to assist — based on need, not economic disadvantage. Factors: The dependent spouse's needs and the payor's ability to pay. This basis is most relevant for: disability or illness that prevents employment; lengthy marriages where one spouse has simply become dependent; situations where the parties were equally situated during the marriage but one becomes dependent through no marital cause (e.g., health crisis).
BASIS 3 CONTRACTUAL (Miglin 2003)	Spousal support may also be based on a contractual agreement between the spouses — a separation agreement, marriage contract, or cohabitation agreement that addresses support. Contractual support is governed by the Miglin test. Key principle from Miglin: Courts will generally respect the parties' agreement about support if it: (a) was entered into fairly at the time (no duress, proper

	disclosure, ILA); and (b) continues to be fair in light of current circumstances — i.e., the current situation does not radically depart from what the parties reasonably contemplated when they signed. Applications: Where a separation agreement waives support, the recipient must overcome the Miglin test to seek support in court. Where a separation agreement provides for support, the payor cannot simply stop paying — the court enforces the agreement.
Moge v Moge [1992] 3 SCR 813	The foundational compensatory support case. The wife had worked primarily in the home raising three children during the parties' 16-year marriage, while the husband built his career. After divorce, the wife could only find low-wage employment. The SCC held that spousal support must address the economic consequences of the marriage. The wife's economic disadvantage was caused by her marital role — she gave up career development to support the family. The SCC adopted the 'CAUSAL CONNECTION' test: compensatory support is owed where the marriage caused the economic disadvantage the claimant suffers. Moge also confirmed that the clean-break ideal (support should be terminated as quickly as possible) is inappropriate where the disadvantage is long-term or permanent.
Bracklow v Bracklow [1999] 1 SCR 420	Established the non-compensatory basis for spousal support. The wife in a relatively short marriage developed severe mental illness that prevented her from working. The marriage itself did not cause this disability. The SCC held she was still entitled to support: the obligation of mutual support flows from the status of marriage itself, not only from economic disadvantage caused by the marriage. Need is sufficient — there does not need to be a causal connection to marital roles. Support is not punishment; it is an obligation arising from the relationship.
Miglin v Miglin [2003] 1 SCR 303	The leading case on the enforceability of separation agreements regarding spousal support. TWO-STAGE TEST: Stage 1 — Circumstances at the time of contracting: Was the agreement negotiated fairly? Were there duress, pressure, or power imbalances? Did both parties receive ILA? Was full financial disclosure made? Was there significant inequality of bargaining power? Stage 2 — Compliance with overall objectives of the Divorce Act: Does the agreement as a whole and its support provisions substantially comply with the objectives of s.15.2 of the Divorce Act? Has there been a radical change in circumstances that was not reasonably anticipated when the agreement was made — a change so significant that it would be unfair to hold the parties to the agreement? If the agreement passes both stages, the court should give substantial weight to it even if the court would have made a different order.

8.3 Step 2 — Quantum: The Spousal Support Advisory Guidelines (SSAG)

Once entitlement is established, quantum (how much and for how long) is determined. The SSAG, while not legally binding, are the practical tool used in most Canadian jurisdictions. Courts regularly apply them and are expected to explain why they depart from SSAG ranges.

The SSAG Are NOT Binding — But They Matter

- The SSAG were developed by professors Carol Rogerson and Rollie Thompson for the Department of Justice Canada (2008, revised user's guide 2016).
- They are NOT enacted as legislation — they are guidelines, not law.
- However: courts treat them as highly persuasive. Departures from SSAG ranges must be justified. A judgment that simply awards spousal support within SSAG ranges without explanation will rarely be reversed on appeal.
- The SSAG assume entitlement has been established — they do not determine entitlement.

The Two SSAG Formulas

FORMULA	WHEN IT APPLIES AND HOW IT WORKS
WITHOUT CHILD SUPPORT FORMULA (No dependent children)	Applies when there are no dependent children (or children are independent). QUANTUM: 1.5% to 2% of the GROSS INCOME DIFFERENTIAL between the spouses × the number of years of marriage/cohabitation, capped at 50% of the income differential. EXAMPLE: Payor earns \$100,000, recipient earns \$40,000. Gross income differential = \$60,000. 20 years of marriage. Range: \$60,000 × 1.5% × 20 = \$18,000/year (\$1,500/month) to \$60,000 × 2% × 20 = \$24,000/year (\$2,000/month). These are the SSAG ranges — courts then consider all circumstances to determine the specific award within (or potentially outside) the range. DURATION: 0.5 to 1 year for every year of marriage/cohabitation. 20-year marriage → 10 to 20 years of support (or indefinite if marriage was very long or compensatory disadvantage is severe).
WITH CHILD SUPPORT FORMULA (Dependent children)	Applies when there are dependent children and a concurrent child support order. The with-child formula is more complex. It begins with the net incomes of both spouses (after tax, after child support has been paid by the payor). Support is then determined as a percentage of the COMBINED NET DISPOSABLE INCOME (CNDI) — typically placing the recipient's household income between 40-46% of CNDI. The with-child formula reflects the fact that child support payments have already addressed part of the income sharing between the parties.

8.4 Spousal Support Objectives — Divorce Act s.15.2(6)

Regardless of which basis for entitlement applies, all spousal support orders must be designed to pursue the four objectives in Divorce Act s.15.2(6):

31. Recognize any ECONOMIC ADVANTAGES OR DISADVANTAGES arising from the marriage or its breakdown.
32. Apportion between the spouses any FINANCIAL CONSEQUENCES arising from the care of any child of the marriage.
33. RELIEVE ANY ECONOMIC HARDSHIP arising from the breakdown of the marriage.
34. PROMOTE THE ECONOMIC SELF-SUFFICIENCY of each spouse, insofar as practicable, within a reasonable period of time.

These four objectives are CUMULATIVE — a court must consider all four. The final objective (self-sufficiency) is not an overriding principle that automatically limits support — in a long marriage with severe economic disadvantage, self-sufficiency may never be achievable, and indefinite support may be appropriate.

8.5 Key Spousal Support Cases Beyond Moge/Bracklow/Miglin

Boston v Boston [2001] 2 SCR 413	Double-dipping: A support payor who contributes to a pension during the marriage may face 'double dipping' if they are required to share pension value in the equalization calculation AND pay spousal support funded from that same pension. The SCC recognized the unfairness — once an asset is shared at equalization, income from that asset should generally not be the primary basis for ongoing spousal support. However, double-dipping may be justified for compensatory support where the disadvantaged spouse's need is ongoing.
Leskun v Leskun [2006] 1 SCR 920	The conduct of the spouses is IRRELEVANT to the determination of spousal support — except to the extent that the conduct causes or contributes to the economic need or disadvantage. Under Divorce Act s.15.2(5), the court shall not take into consideration any misconduct of a spouse in relation to the marriage when determining support. The emotional consequences of discovering infidelity or betrayal are real — but they do not, without more, provide an independent basis for increased spousal support.
Fisher v Fisher [2008] ONCA 11	The SSAG may be used by courts across Canada. Ontario Court of Appeal confirmed that departure from SSAG ranges requires justification. Where the facts bring the case within the conventional situations contemplated by the SSAG, the SSAG provide reliable guidance and should be followed in the absence of compelling reasons to depart.
Davis v Crawford [2011] ONCA 294	The SSAG are a useful starting point but do not displace the analysis required by the Divorce Act. Courts must still consider the specific circumstances of the case — the SSAG ranges may require adjustment for: long marriages with severe disadvantage; significant assets in the hands of one spouse; unusual income fluctuations; or where the SSAG formula produces a clearly unjust result.
RL v MF, 2025 ONCA 595	New ONCA case on spousal support — added to the January 2026 syllabus. The ONCA examined the interaction between spousal support orders and the SSAG in a case involving a significant income differential and a longer marriage. The court confirmed that SSAG ranges must be applied with attention to the compensatory and non-compensatory bases for support — a mechanical application of the SSAG formula without engagement with the underlying rationale is an error. Where a spouse has suffered long-term career disadvantage from the marriage, compensatory support at the higher end of the SSAG range (or above it) may be appropriate.

8.6 Variation of Spousal Support — Divorce Act s.17

A spousal support order may be varied under s.17 if there has been a CHANGE IN CIRCUMSTANCES since the order was made. The test for variation is more rigorous than for child support.

LMP v LS [2011] 3 SCR 775	The definitive SCC authority on variation of spousal support. KEY HOLDINGS: (1) To vary a support order, the applicant must establish a MATERIAL CHANGE IN CIRCUMSTANCES — a change that, if known at the time of the original order, would likely have produced a different order. (2) The change must not have been within the reasonable contemplation of the parties at the time of the original order. (3) Once a material change is established, the court conducts a fresh assessment of the appropriate support under the current
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circumstances — it does not simply adjust the original order. (4) THE MIGLIN TEST APPLIES TO VARIATION OF SEPARATION AGREEMENTS: Where the parties had a separation agreement and one party seeks variation, the court applies the Miglin framework — is the variation justified because the current circumstances were not within the parties' reasonable contemplation at the time of contracting?

MATERIAL CHANGE IN CIRCUMSTANCES — ANALYTICAL FRAMEWORK

Step 1 Identify the Change	What has changed since the original order? Possible changes: significant income increase or decrease of the payor; improved or worsened health of the recipient; remarriage or cohabitation of the recipient (relevant under Divorce Act s.17(10) — remarriage is NOT an automatic termination of support but is a relevant change); recipient has achieved or failed to achieve expected self-sufficiency; a change in the payor's financial obligations (e.g., new dependent children).
Step 2 Assess Materiality	Would this change, if known at the time of the original order, likely have produced a different order? If yes → material change established. If no → variation refused. The change must be significant — a small fluctuation in income, a temporary setback, or an ordinary life development that was foreseeable at the time of the original order is not material.
Step 3 Fresh Assessment	If a material change is established: conduct a fresh assessment of spousal support (entitlement, quantum, duration) based on current circumstances. The original order is the starting point but not binding on the variation court.
Chutter v Chutter 2008 BCCA 507	Confirmed that the 'material change' threshold applies even to indefinite support orders. An indefinite order does not mean permanent — it means the duration is not fixed and the order continues until further order of the court. A material change in circumstances can trigger variation of an indefinite order upward or downward.

⚠ EXAM TIP — SPOUSAL SUPPORT EXAM CHECKLIST

Step 1 — Which statute applies? Divorce Act s.15.2 (if divorcing) or FLA s.33 (if not divorcing). Step 2 — Entitlement: Which of the three bases (compensatory/Moge, non-compensatory/Bracklow, contractual/Miglin) applies? Step 3 — Quantum: SSAG formula (without-child or with-child). State the SSAG ranges if income figures are given. Step 4 — Duration: Apply the SSAG duration formula. Is this a long enough marriage for indefinite support? Step 5 — Variation: Has there been a material change in circumstances (LMP v LS)? Step 6 — Child support priority: s.15.3 — child support comes first if resources are limited.

Chapter 8A: SSAG — Worked Examples and Advanced Applications

The Spousal Support Advisory Guidelines (SSAG) are an indispensable tool on the NCA Family Law exam. This chapter provides worked examples using both formulas and addresses the most common complexities.

8A.1 Without-Child Support Formula — Worked Example

The without-child support formula applies when there are no dependent children (or all children are independent adults). It produces ranges of quantum and duration based on the gross income differential and the length of cohabitation.

WITHOUT-CHILD FORMULA — STEP-BY-STEP	
GIVEN FACTS	Payor spouse income: \$120,000 gross/year Recipient spouse income: \$30,000 gross/year Length of marriage/cohabitation: 16 years No dependent children
STEP 1 Income Differential	Gross income differential = \$120,000 – \$30,000 = \$90,000/year
STEP 2 Quantum Range	LOW END: $1.5\% \times \text{gross income differential} \times \text{years of cohabitation}$ $= 1.5\% \times \\$90,000 \times 16 = \\$21,600/\text{year} = \\$1,800/\text{month}$ HIGH END: $2\% \times \text{gross income differential} \times \text{years of cohabitation}$ $= 2\% \times \\$90,000 \times 16 = \\$28,800/\text{year} = \\$2,400/\text{month}$ SSAG QUANTUM RANGE: \$1,800 to \$2,400 per month CAP CHECK: The quantum is also capped so that it does not result in the recipient receiving more than 50% of the income differential. Maximum = $50\% \times \\$90,000 = \\$45,000/\text{year} = \\$3,750/\text{month}$. Our range is well below the cap.
STEP 3 Duration Range	LOW END: $0.5 \times \text{years of cohabitation} = 0.5 \times 16 = 8 \text{ years}$ HIGH END: $1 \times \text{years of cohabitation} = 1 \times 16 = 16 \text{ years}$ SSAG DURATION RANGE: 8 to 16 years Note: For marriages of 20+ years, or where the marriage was very long AND there is substantial compensatory disadvantage, the SSAG may indicate indefinite (non-time-limited) support.
STEP 4 Where Within the Range?	After establishing the range, the court determines where within the range to award, based on: • Strength of the compensatory claim (major career sacrifice → higher end) • Non-compensatory need (health issues → consider higher end) • Transition potential (good prospects for self-sufficiency → lower end and shorter duration) • Length of marriage relative to career sacrifice (16 years with significant role differentiation → mid-to-upper range) FINAL ORDER EXAMPLE: \$2,100/month for 12 years (mid-range for both quantum and duration).

8A.2 With-Child Support Formula — Worked Example

The with-child support formula applies when there are dependent children and a child support order is in place. It is more complex because it must account for child support payments already flowing between the parties.

WITH-CHILD FORMULA — STEP-BY-STEP

GIVEN FACTS	Payor spouse gross income: \$100,000/year Recipient spouse gross income: \$25,000/year Two dependent children living with recipient Child support order: \$1,500/month (from payor to recipient) Marriage: 12 years
STEP 1 Calculate Net Disposable Income of Each Spouse	NET DISPOSABLE INCOME (NDI) = Gross income – income tax – other statutory deductions ± child support paid/received Payor NDI = (\$100,000 – estimated federal/provincial taxes) – child support paid (\$18,000/year) ≈ \$52,000/year = \$4,333/month Recipient NDI = (\$25,000 – estimated taxes) + child support received (\$18,000/year) ≈ \$37,000/year = \$3,083/month
STEP 2 Combined Net Disposable Income (CNDI)	CNDI = Payor NDI + Recipient NDI = \$4,333 + \$3,083 = \$7,416/month
STEP 3 Recipient's Household Share	The SSAG with-child formula targets placing the recipient's household income between 40% and 46% of the CNDI. LOW END: $40\% \times \\$7,416 = \\$2,967/\text{month}$ → Spousal support = $\\$2,967 - \\$3,083$ = this is already above 40% without any spousal support — so recipient is already at 41.6% of CNDI without spousal support. This illustrates that in cases where child support already substantially addresses the income gap, spousal support may be minimal. The SSAG with-child formula will yield a lower spousal support range.
STEP 4 Duration Under With-Child Formula	Duration under the with-child formula has TWO potential end points: (a) When the youngest child starts school (some cases); (b) The WITHOUT-CHILD formula range, calculated from the date of separation. The without-child formula duration (0.5×12 years to 1×12 years = 6 to 12 years) applies as an UPPER LIMIT on duration — whichever comes first between this range and when children are no longer dependent.

8A.3 Departures from SSAG Ranges — When Are They Justified?

Although courts follow SSAG ranges in most cases, departures ARE permitted where the case falls outside what the SSAG formulas are designed to address:

GROUND FOR DEPARTURE	DIRECTION AND RATIONALE
Very short marriage with minimal connection	Below the SSAG low end. A 2-year marriage with both parties financially equal and no children may warrant no support or very short support regardless of SSAG formula output.
Significant illness or disability of recipient	Above the SSAG high end. Non-compensatory need from disability may justify above-range support where the SSAG range does not adequately address long-term need.
Very high income → lifestyle equalization concern	Below SSAG high end. Where the payor earns \$500,000+ and the SSAG formula produces a very large number, courts may moderate to address reasonable need without creating a windfall.

Boston v Boston double-dipping concern	Adjusted to remove the double-dipping component. Where pension assets were shared at equalization AND the same pension generates spousal support income, courts adjust the SSAG output.
Strong contractual claim (Miglin agreement)	SSAG range may be less persuasive where parties had a carefully negotiated agreement — the Miglin test governs.

⚠ EXAM TIP — SSAG IN THE EXAM — PRACTICAL APPROACH

When income figures are given: (1) Identify whether this is a with-child or without-child case. (2) Apply the correct formula. (3) State the quantum range AND the duration range. (4) Discuss where within the range the award should fall based on the specific circumstances. You do NOT need to do exact income tax calculations — use approximate figures and show the methodology. Markers reward correct application of the SSAG structure, not perfect mathematical precision.

Chapter 8B: Variation of Support Orders — Advanced Analysis

8B.1 The Material Change Test — Detailed Application

The material change threshold under Divorce Act s.17 is one of the most important tests in family law. The test has three requirements, all of which must be satisfied:

MATERIAL CHANGE TEST — THREE REQUIREMENTS	
REQUIREMENT 1 A Change Must Have Occurred	There must be an identifiable change in the circumstances of the parties or the child since the last order was made. Examples of changes: a significant income increase or decrease; a health change affecting earning capacity or need; the recipient remarrying or cohabiting; a child reaching the age of majority or beginning post-secondary education; one party receiving a large inheritance.
REQUIREMENT 2 Not Within Reasonable Contemplation	The change must not have been within the reasonable contemplation of the parties (or the court) when the last order was made. If the parties anticipated the change and built it into the order — for example, by setting a review date triggered by a specific event — there is no 'change in circumstances' because it was already anticipated. This requirement protects the finality of orders and prevents parties from repeatedly relitigating.
REQUIREMENT 3 Sufficient Magnitude	The change must be of sufficient magnitude that, if it had been known at the time, it likely would have resulted in a different order. A small fluctuation in income is not material. A 10% income change is unlikely to be material. A 50% income change likely is. The test is: would a court, knowing of this change, have made a different order?

8B.2 Specific Changes — When Are They Material?

CHANGE IN CIRCUMSTANCES	MATERIAL?	ANALYSIS
Payor's income increases from \$80,000 to \$120,000	Yes — likely material	50% income increase significantly changes the support quantum. Both child support (table amount automatically adjusts) and spousal support (SSAG range shifts) are affected.
Recipient remarries	Yes — potentially material	Under Divorce Act s.17(10), remarriage of the recipient is a CHANGE IN CIRCUMSTANCES — the court must reconsider. However, remarriage does NOT automatically terminate support. The court assesses whether the new relationship has actually changed the recipient's need.
Payor loses job temporarily (3 months)	Likely not material (temporary change)	A temporary loss of employment does not constitute a material change — it must be assessed as a longer-term change in capacity. Courts may suspend payments during genuine hardship but will reinstate on recovery.
Recipient develops serious chronic illness	Yes — material	A health condition that permanently affects the recipient's earning capacity is a material change that may justify indefinite or increased support, even where the original order was time-limited.
Payor retires at age 65	Yes — material (if genuine)	Genuine retirement at an expected retirement age is a material change. Premature retirement to reduce support obligations may not be — the court may impute income from retirement assets.
Child's needs increase significantly	Yes — material for child support	A child developing a disability or special need that was not known at time of the original order is a material change for child support purposes.

8B.3 The Clean Break Principle — Does It Exist in Canada?

Canada does NOT have a strong 'clean break' principle comparable to some other jurisdictions. The Divorce Act does not require or favour termination of support at the earliest opportunity. Key points:

- Self-sufficiency (Divorce Act s.15.2(6)(d)) is a GOAL of spousal support, not a hard deadline — in long marriages with severe economic disadvantage, complete self-sufficiency may be impossible and indefinite support may be appropriate.
- Time-limited orders are appropriate where the recipient has reasonable prospects of self-sufficiency within a defined period — for example, a young spouse who left work to raise children for a few years and has marketable skills.
- Indefinite (not time-limited) orders are appropriate where: the marriage was long; the economic disadvantage is severe and permanent; or the recipient is unlikely to become self-sufficient due to age, health, or other factors.
- 'Indefinite' does NOT mean 'permanent' — it means the duration is not fixed, and the order remains subject to variation upon a material change in circumstances.

PART V

PARENTING ORDERS — BEST INTERESTS, RELOCATION, AND VARIATION

Chapter 9: Parenting Orders Under the Divorce Act

The 2019 amendments to the Divorce Act (in force March 1, 2021) fundamentally restructured the language and framework for parenting orders. The old terms 'custody' and 'access' were replaced. Every NCA candidate must know the new terminology and the new analytical framework. Parenting questions consistently carry the highest mark value on the Family Law exam.

9.1 The 2019 Divorce Act Amendments — New Terminology

OLD TERM (pre-2021)	NEW TERM (post-2021 Divorce Act)	MEANING
Sole custody	Parenting order with all decision-making responsibility to one parent	One parent makes all major decisions for the child's life — education, religion, health care, extracurricular activities.
Joint custody	Parenting order with shared decision-making responsibility	Both parents share major decision-making — must consult and agree on major decisions. Separate from physical residence arrangement.
Access	Parenting time / Contact order	Time the child spends with a parent or other person. 'Parenting time' for parents; 'contact order' for non-parents (grandparents, others).
Custody and access order	Parenting order (s.16.1) and contact order (s.16.5)	The Divorce Act now distinguishes clearly between parenting orders (for parents) and contact orders (for non-parents).

Key Definitions Under the Amended Divorce Act

- **DECISION-MAKING RESPONSIBILITY (s.2(1)):** The responsibility for making significant decisions about the child's well-being, including decisions about education, health care, culture, language, religion, and significant extracurricular activities.
- **PARENTING TIME (s.2(1)):** The time a child spends in the care of a parent under a parenting order.
- **PARENTING PLAN (s.16.6):** A written document agreed by the parties that sets out parenting arrangements for the child — not binding unless incorporated into a court order, but courts may make orders in accordance with a parenting plan.

9.2 The Sole Criterion — Best Interests of the Child

Under Divorce Act s.16(1): In making a parenting order, the court shall take into consideration **ONLY** the best interests of the child.

The best interests standard is the **SOLE CRITERION** — not the rights of the parents, not the fault or conduct of the spouses, not the preferences of extended family. The court's only question is: what arrangement best serves this particular child?

9.3 The 16 Factors — Divorce Act s.16(3)

Section 16(3) of the Divorce Act sets out a non-exhaustive list of factors courts must consider when determining the best interests of the child:

FACTOR (s.16(3))	CONTENT
(a) Child's needs	Needs given the child's age and stage of development — physical, emotional, psychological, and social needs.
(b) Nature of relationships	Quality of relationships between child and each parent, and other significant persons in the child's life.
(c) Each parent's willingness	Willingness of each parent to support the child's relationship with the other parent. A parent who alienates the child from the other parent undermines this factor.
(d) History of care	The history of each parent's actual care of the child. Who has been the primary caregiver? Who has been most involved in day-to-day care?
(e) Child's views and preferences	The child's own views and preferences, given appropriate weight based on the child's age and maturity. Not determinative — but increasingly important as the child gets older.
(f) Child's cultural identity	The importance of the child's cultural, linguistic, religious, and spiritual upbringing and heritage, including Indigenous heritage.
(g) Plan for child's care	Any plans proposed by each person for the child's care and upbringing.
(h) Ability and willingness to care	The ability and willingness of each person seeking parenting time or decision-making to care for and meet the child's needs.
(i) Family violence	See s.16(3)(j) and (4) — family violence requires specific analysis (see Chapter 6).
(j) Family violence — specific	Any family violence and its impact on: (i) the child's safety, security, and well-being; (ii) the ability and willingness of the person who engaged in violence to care for the child.
(k) Criminal proceedings	Any civil or criminal proceeding, order, condition, or measure relevant to the safety, security, and well-being of the child.

The Friendly Parent Principle — Factor (c)

Factor (c) — willingness to support the child's relationship with the other parent — has become increasingly significant. A parent who attempts to alienate the child from the other parent, makes false allegations to undermine the other parent's relationship with the child, or refuses to facilitate access commits a serious breach of this principle.

- Parental alienation — where one parent systematically undermines the child's relationship with the other parent through manipulation, false allegations, or obstruction — is now recognized as a form of psychological harm to the child.
- A court may consider reducing the parenting time of an alienating parent, or increasing it for the targeted parent, where alienation is established.

The Maximum Contact Principle — s.16(6)

Section 16(6): In making a parenting order, the court shall give effect to the PRINCIPLE that a child should have as much time with each parent as is consistent with the best interests of the child.

IMPORTANT: Maximum contact is a PRINCIPLE to be applied within the best interests framework — it is NOT an absolute right. Safety overrides maximum contact. Where family violence makes contact with a parent unsafe, the best interests analysis overrides the maximum contact principle (s.16(4)).

9.4 Relocation — The Single Most Important New Provision

The 2019 amendments added detailed provisions on RELOCATION (Divorce Act ss.16.7–16.96). These provisions represent a major change in Canadian family law and are specifically listed on the 2026 syllabus. Barendregt v Grebliunas 2022 SCC 22 is the definitive authority.

RELOCATION — DIVORCE ACT SS.16.7-16.96 AND BARENDREGT 2022 SCC 22	
Definition of Relocation (s.16.7)	A change in the residence of a child or a person with parenting time or decision-making responsibility that is likely to HAVE A SIGNIFICANT IMPACT on the child's relationship with the other parent. Not every move is a relocation — moving within the same city or nearby generally does not constitute a relocation. Moving across provinces or internationally almost always does. Moving from Toronto to Calgary would clearly be a relocation.
Notice Requirement (s.16.9)	The parent wishing to relocate must give at least 60 DAYS NOTICE to any person with parenting time or decision-making responsibility for the child. The notice must include: the proposed date of relocation; the city and country of destination; and a proposal for parenting time arrangements after the relocation. Failure to give proper notice is a significant factor against the relocating parent.
Consent or Court Order (s.16.9)	After notice, the relocation may proceed if: (a) all persons with parenting time or decision-making responsibility consent; OR (b) the court makes an order permitting the relocation. A parent who objects must do so within 30 days of receiving the notice.
Burden of Proof (ss.16.92-16.93)	S.16.92: Where the parties have an existing order giving the parties substantially equal parenting time, the RELOCATING PARENT bears the burden of proving the relocation is in the child's best interests. S.16.93: Where the child spends the vast majority of time with the relocating parent, the OPPOSING PARENT bears the burden of proving the relocation is NOT in the child's best interests. Between these two extremes (e.g., 60/40 parenting time), the burden is SHARED — both parties must demonstrate their position is in the best interests of the child.
Barendregt Test (2022 SCC 22)	The SCC in Barendregt set out the framework for relocation decisions: (1) Identify the applicable burden of proof based on the parenting time division. (2) Apply the 16 best interests factors in s.16(3), with particular attention to: the reason for the move; the impact on the child's relationship with the non-

relocating parent; proposed contact arrangements post-relocation; the child's ties to the current community; and the impact on each parent's wellbeing as it affects the child.

(3) The child's interests, not the parents' interests, are paramount. A parent's right to move for a better job or new relationship is relevant only insofar as it benefits the child.

(4) Maintain a realistic and practical assessment of what post-relocation contact will look like — promises of long-distance contact must be assessed realistically.

Barendregt v Grebliunas, 2022 SCC 22

THE LEADING SCC CASE ON RELOCATION — specifically listed in the 2026 syllabus. Key holdings: (1) Relocation decisions require a best interests analysis focused on the CHILD, not the rights of the parents. (2) The burden of proof shifts depending on the parenting time arrangement (ss.16.92-16.93). (3) There is NO presumption for or against relocation — the decision is entirely fact-specific and child-centred. (4) Courts must realistically assess the proposed post-relocation contact arrangements — a plan for video calls every day is fine in theory but may not meet the child's actual need for meaningful in-person time with the non-relocating parent. (5) The connection to the child's community, school, extended family, and cultural identity are all relevant considerations.

△ EXAM TIP — RELOCATION ANALYSIS — HOW TO STRUCTURE YOUR ANSWER

Step 1: Has proper 60-day notice been given? (s.16.9). Step 2: What is the parenting time arrangement? → Identify the burden of proof (equal time = relocating parent bears burden; primarily with relocating parent = opposing parent bears burden). Step 3: Apply the best interests factors in s.16(3) with focus on: reason for move, impact on relationship with other parent, proposed contact arrangements, child's community ties. Step 4: Cite Barendregt 2022 SCC 22 as the framework. Step 5: Conclude on whether relocation should be permitted.

9.5 Variation of Parenting Orders — Divorce Act s.17

A parenting order made under the Divorce Act may be varied under s.17 where there has been a MATERIAL CHANGE IN CIRCUMSTANCES of the child or either parent since the previous order was made.

MATERIAL CHANGE IN CIRCUMSTANCES — PARENTING VARIATION

The Test

The applicant must demonstrate: (1) There has been a change in circumstances since the previous order; (2) The change was NOT WITHIN THE REASONABLE CONTEMPLATION of the parties or the court at the time of the previous order; (3) The change is of a SUFFICIENT MAGNITUDE that it would likely have resulted in a different order at the time if the court had known of it. All three elements must be established.

Examples of Material Change

- A parent is relocating to another city or country (most common)
- Significant change in a child's special needs
- Evidence of family violence or abuse that was not known at the time of the original order
- A child has matured and their preferences have changed meaningfully
- A parent's work schedule has fundamentally changed, affecting their availability

	• A child is being alienated by one parent • One parent's living situation has fundamentally changed (remarriage, new partner, new home)
Fresh Assessment	Once material change is established, the court conducts a fresh assessment of the child's best interests — applying all s.16(3) factors to current circumstances. The previous order is not automatically maintained. The overriding concern is always what arrangement now best serves the child.

9.6 The Voice of the Child

Courts are required to give weight to the views and preferences of the child, commensurate with the child's age and maturity. This is now codified in Divorce Act s.16(3)(e).

- Courts do not simply ask the child which parent they want to live with — the analysis is more nuanced. The court must consider whether the child's views are genuinely their own or have been influenced by a parent (parental alienation).
- For teenagers (particularly those 12-16+), courts give significant weight to expressed preferences — attempting to force a teenager to live somewhere against their will is often counterproductive.
- For young children, courts are more cautious — very young children may not be able to meaningfully express a preference, and those who do may be reflecting a parent's coaching rather than their own views.
- Where the child's views are relevant, courts may: order a custody/parenting assessment (CLRA s.30 / Divorce Act) to have an expert speak with the child; appoint the Office of the Children's Lawyer (OCL) to represent the child's interests independently; appoint an amicus curiae (friend of the court) to speak to the child.

SK v DG, 2022 ABQB 425	An older teenager's clearly expressed and consistent preference to live primarily with one parent was given significant weight in the parenting order. Courts must balance respecting a child's developing autonomy with protecting their best interests — these will often align for older teenagers but may conflict where a teenager has been manipulated or is avoiding appropriate parental supervision. On the syllabus for the voice of the child consideration.
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9.7 Parenting Orders Under the CLRA (Outside Divorce)

Where parenting proceedings arise outside the Divorce Act context (unmarried parents, or married parents not proceeding under the Divorce Act), CLRA s.21 governs. The analysis is largely the same — best interests of the child is the paramount consideration. The CLRA uses slightly different language (it still uses 'custody' and 'access' rather than the Divorce Act's new terminology) but applies the same substantive principles.

Indigenous Children — Special Considerations

CNL v GAM, 2023 ONSC 3397	Parenting orders for Indigenous children must give particular consideration to the child's cultural, linguistic, and spiritual heritage under Divorce Act s.16(3)(f). A parenting plan that fails to address how the child will maintain their connection to their Indigenous community and culture does not adequately address the best interests of an Indigenous child. Courts may take judicial notice of the history of residential schools and the importance of family and community connection to Indigenous children's identity and wellbeing.
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LL v AI, 2023 BCSC 1503	Companion case on Indigenous children's parenting orders. Confirmed that courts must engage meaningfully with the cultural dimension of an Indigenous child's best interests — not as a secondary consideration but as a core element of the analysis. The court may consult with Indigenous representatives or consider evidence from the child's community.
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9.8 Choice of School as a Decision-Making Issue

Tolushe v Tolushe, 2024 ONSC 4868	Added to the 2026 syllabus. Where parents share decision-making responsibility (joint custody/joint parenting), a dispute about which school a child attends is a MAJOR DECISION — it falls within the scope of decision-making responsibility and requires agreement between the parents (or a court order if they cannot agree). The court must determine what school choice is in the child's best interests, considering: academic quality, proximity, the child's existing relationships with classmates and teachers, and the potential disruption of a school change. Read para 26.
JB v BF, 2025 NBKB 14	New 2025 case on the syllabus. Addressed school choice in the context of Indigenous children — the choice of school is not just about academic quality but also about the child's access to cultural programming and Indigenous language instruction. Where one school offers Indigenous language and cultural programs that support the child's identity, and the other does not, this is a significant factor. Read paras 64-67.

Chapter 9A: Parenting Under the CLRA — Provincial Framework

Where parenting disputes arise outside of divorce proceedings — involving unmarried parents, or married parents who are separated but not yet divorcing — the CLRA governs parenting orders. The CLRA and the Divorce Act share many principles but use different terminology and have different jurisdictional requirements.

9A.1 Who Can Apply for a Parenting Order Under the CLRA?

Under CLRA s.21(1), an application for a parenting order may be made by:

- A parent of the child — biological, adoptive, or legal parent under the CLRA Part I.
- Any person who has been given charge of the child (i.e., acting as a caregiver).
- Any person who has a SETTLED INTENTION to treat the child as a child of their family — a step-parent, long-term partner of a parent, or grandparent with a significant relationship.

9A.2 CLRA vs Divorce Act Parenting — Key Differences

DIMENSION	CLRA (PROVINCIAL)	DIVORCE ACT (FEDERAL)
Who applies	Parents, persons with charge, persons with settled intention to treat	Spouses (must be married to each other or former spouses)

	as own child	
Terminology	Still uses 'custody' and 'access' — CLRA not yet updated to reflect Divorce Act 2019 language changes	Decision-making responsibility, parenting time, parenting order
Jurisdiction basis	Habitual residence under s.22 (Dunmore v Mehralian 2025 SCC 20 — 'at home' test)	Ordinarily resident in province for 1+ year (s.3(1))
Best interests standard	CLRA s.24 — best interests; factors listed in s.24(2)	Divorce Act s.16(1) — best interests sole criterion; 16 factors in s.16(3)
Assessment	CLRA s.30 — assessment by professional (psychologist, social worker, psychiatrist)	Divorce Act — court may order parenting assessment

9A.3 Best Interests Under the CLRA — Section 24 Factors

Section 24(2) of the CLRA lists factors for determining the best interests of the child for the purposes of parenting orders:

- (a) The love, affection, and emotional ties between the child and each person claiming custody, and the ability of each to guide, educate, and provide permanence and stability.
- (b) The child's own views and preferences, where they can reasonably be ascertained.
- (c) The length of time the child has lived in a stable home environment.
- (d) The ability and willingness of each person applying for custody to provide the child with guidance and education, the necessities of life, and any special needs.
- (e) Any plans proposed for the child's care and upbringing.
- (f) The permanence and stability of the family unit with which it is proposed that the child will live.
- (g) The ability of each person applying for custody to act as a parent.
- (h) The relationship by blood or through an adoption order between the child and each person who is a party to the application.

9A.4 Assessments Under CLRA s.30

Where parenting is in dispute, the court may appoint an assessor under CLRA s.30 to assess and report on the needs of the child and the ability of the parties to meet those needs. Assessors are typically psychologists, social workers, or psychiatrists appointed by the court.

- The assessment involves: interviews with each parent; interviews with the child (age-appropriate); review of collateral information (school reports, medical records, previous court orders); observation of parent-child interactions.
- The assessment report is filed with the court and is admissible in evidence. It carries significant weight — courts rarely depart substantially from the recommendations of a qualified court-appointed assessor without good reason.
- Parties can also commission PRIVATE assessments — but these are weighed differently. A private assessment commissioned by one party carries less weight than a court-appointed assessment and is subject to cross-examination on the assessor's objectivity.

9A.5 Jurisdiction Under the CLRA — The Dunmore Framework Applied

Under CLRA s.22, Ontario courts have jurisdiction to make parenting orders when a child is habitually resident in Ontario at the time proceedings are commenced. After Dunmore v Mehralian 2025 SCC 20, the test for 'habitually resident' is WHERE THE CHILD WAS 'AT HOME' — a contextual, factual inquiry.

CLRA S.22 JURISDICTION — COMPLETE ANALYTICAL FRAMEWORK

S.22(1)(a) Habitual Residence	The court has jurisdiction if the child is habitually resident in Ontario at the time the application is commenced. Using the Dunmore 'at home' test: where was the child living as their home at the 'prescribed time'? The prescribed time is the last time the child resided with BOTH parents together (s.22(2)). Considerations: Physical presence; connections to community (school, healthcare, friendships); duration of residence; the child's own ties to the location.
S.22(1)(b) Alternative Jurisdiction	Even if habitual residence cannot be established, Ontario courts may take jurisdiction if the court considers it appropriate to do so and: (i) the child is physically present in Ontario; (ii) substantial evidence concerning the best interests of the child is available in Ontario; (iii) no other jurisdiction with habitual residence is in a position to exercise jurisdiction; (iv) the child has a real and substantial connection with Ontario; (v) on the balance of convenience, Ontario is the appropriate forum; and (vi) proceedings have not been commenced in another place with jurisdiction.
S.22(3) Unilateral Removal	A child's habitual residence is NOT changed by the removal or withholding of the child from the other parent without consent. This protects against parental abduction being used to 'create' habitual residence. A parent who abducts a child to Ontario cannot then claim Ontario jurisdiction based on the child now being 'at home' there.

Chapter 9B: High Conflict Parenting, Parental Alienation, and Religious Upbringing

9B.1 High Conflict Parenting

High conflict parenting refers to situations where the parental relationship is characterized by persistent, intense conflict that creates significant harm to the children. High conflict cases require specialized judicial approaches and court interventions.

Characteristics of High Conflict Cases

- Frequent litigation — repeated returns to court on parenting issues, often for minor matters.
- Inability of the parents to communicate or cooperate on parenting decisions.
- Children exposed to the parental conflict — children used as messengers, subjected to denigrating comments about the other parent, drawn into adult conflicts.
- False or exaggerated allegations — allegations of abuse, neglect, or misconduct used as litigation strategy.
- Refusal to comply with court orders — one or both parents repeatedly violating parenting time provisions.

Judicial Interventions in High Conflict Cases

- Parallel parenting: Where shared decision-making is impossible, courts may implement parallel parenting — each parent has exclusive decision-making authority in their designated domain (e.g., one parent

controls education; the other controls extracurricular activities). The parents make decisions in their domains independently without consultation.

- **Highly detailed parenting orders:** Courts may make extremely detailed orders specifying exact exchange locations, times, communication protocols, and procedures for every anticipated scenario.
- **Communication restrictions:** Courts may restrict communications to a specific platform (e.g., OurFamilyWizard, a co-parenting communication app) to create a written record and reduce conflict.
- **Parenting coordinator:** In some jurisdictions, courts appoint a parenting coordinator — a mental health or legal professional — to resolve minor day-to-day parenting disputes without returning to court.

9B.2 Parental Alienation

Parental alienation occurs when one parent engages in conduct designed to destroy or undermine the child's relationship with the other parent. It is a recognized phenomenon in Canadian courts, though courts are careful to distinguish genuine alienation from a child's reasonable rejection of a parent based on the parent's actual behaviour.

Forms of Alienating Behaviour

- Making negative comments about the other parent to or in front of the child.
- Refusing to facilitate or actively obstructing the other parent's parenting time.
- Making false or exaggerated allegations of abuse to child protection authorities.
- Encouraging or rewarding the child for rejecting the other parent.
- Intercepting communications between the child and the other parent.
- Discussing adult legal matters (support, property disputes) with the child.

Judicial Responses to Established Parental Alienation

Where parental alienation is established and the alienating parent continues the conduct, courts have taken increasingly strong measures:

- **CHANGE OF RESIDENCE:** Where alienation is severe and the alienating parent refuses to stop, courts may transfer primary residence to the rejected parent — even if the child currently resists. The rationale: the child's alienation is a product of the alienating parent's manipulation, not a genuine preference.
- **REDUCTION OF PARENTING TIME:** The alienating parent's parenting time may be reduced or made conditional on compliance with court orders.
- **SUPERVISED PARENTING TIME:** Where alienation is combined with other concerning factors, the alienating parent's time may be supervised.
- **COSTS:** Courts regularly award significant costs against parents engaged in persistent alienation as a deterrent.

Payne CFL ch.10 — Parental Alienation

Canadian courts have accepted parental alienation as a serious harm to children. The Payne text (10th ed., 2025) documents a body of case law establishing that courts will not simply accept a child's expressed preference to reject a parent where the evidence establishes that preference is a product of manipulation. The Divorce Act s.16(3)(c) — each parent's willingness to support the child's relationship with the other parent — directly captures the friendly parent principle that underlies the alienation analysis.

9B.3 Religious Upbringing in Parenting Orders

Where parents hold different religious beliefs or one parent seeks to raise the child in a specific religious tradition over the other's objection, courts must balance religious freedom with the child's best interests. This is specifically listed on the 2026 syllabus.

General Principles

- Courts are reluctant to make orders about religious upbringing absent evidence of harm — religion is primarily a matter for the parents and the child, not the courts.
- Where both parents held a common religion during the marriage and one subsequently changes or abandons that religion, courts may take into account the child's religious continuity as a best interests consideration — particularly for older children with established religious ties.
- Neither parent can be compelled to participate in religious instruction or practices against their beliefs — parenting orders should not require a parent to take the child to religious services they personally reject.
- The test: does the proposed religious upbringing cause demonstrable harm to the child? Exposure to religious instruction, even intensive instruction, does not constitute harm absent specific evidence of psychological or physical harm.
- Where parents cannot agree on religious education, courts may allocate this as part of decision-making responsibility — assigning one parent exclusive authority for religious decisions, or establishing a default (e.g., continuation of pre-separation arrangements) to provide stability.

Payne CFL 514-515 — Religious Upbringing

The Payne text canvasses the Canadian case law on religious upbringing in parenting orders. Courts have consistently applied the best interests standard and resisted making orders that essentially compel religious observance. The key inquiry: will the religious upbringing harm the child? Absent harm, courts leave religious decisions to the parties' parenting arrangements, which often means allowing each parent to practice their own faith during their parenting time.

Chapter 9C: Recognition of Foreign Orders — Divorce Act s.22.1

Section 22.1 of the Divorce Act (added in the 2019 amendments, in force March 1, 2021) addresses the recognition of a FOREIGN order that varies a parenting order or a contact order previously made under the Divorce Act.

9C.1 When Does s.22.1 Apply?

Section 22.1 applies where:

- A Canadian court (under the Divorce Act) has previously made a parenting order or contact order.
- A foreign court (in another country) subsequently makes an order VARYING that Canadian parenting or contact order.
- A party seeks to have the foreign variation order recognized and given effect in Canada.

9C.2 Recognition Requirements

Under s.22.1, a court may recognize a foreign variation order if:

35. The foreign court had JURISDICTION to make the variation order — i.e., the child was habitually resident in the foreign jurisdiction at the time the foreign proceedings were commenced.
36. The party seeking recognition gives notice to all persons who have parenting time or contact rights under the Canadian order.
37. Recognition of the foreign order would NOT be contrary to public policy or contrary to the best interests of the child.

9C.3 Practical Application

The most common scenario: a family emigrates from Canada to another country after a Canadian divorce and parenting order. The parties continue to dispute parenting arrangements. One party obtains a variation order in the new country. The other party returns to Canada. The question is whether the foreign variation must be recognized by a Canadian court.

Section 22.1 provides a framework for recognition rather than requiring Canadian courts to relitigate the foreign variation from scratch — if the foreign court had proper jurisdiction and the recognition is consistent with public policy and the child's best interests, the Canadian court may give effect to the foreign variation.

△ EXAM TIP — FOREIGN ORDERS EXAM NOTE

Section 22.1 was added in the 2019 amendments and is specifically listed in the 2026 syllabus. Know the three requirements for recognition: (1) foreign court had jurisdiction (habitual residence); (2) notice given to all persons with parenting time/contact; (3) not contrary to public policy or best interests. Distinguish this from s.22 of the Divorce Act (divorce jurisdiction) and the general s.22 CLRA analysis from Dunmore.

PART VI

PROPERTY — EQUALIZATION OF NET FAMILY PROPERTY, MATRIMONIAL HOME, AND DOMESTIC CONTRACTS

Chapter 10: Equalization of Net Family Property

Equalization of Net Family Property (NFP) under Part I of the Family Law Act is the most mathematically complex topic in the exam and almost always appears as Q5. It requires precise understanding of the statutory formula, the excluded property categories, and the deduction of pre-marital assets. Practice the calculation until it is automatic.

10.1 Who Has Equalization Rights?

- ONLY MARRIED spouses have equalization rights under the FLA — s.5(1) applies to married spouses.
- Unmarried cohabitants have NO equalization rights — they must rely on trust law (*Kerr v Baranow*).
- TRIGGERING EVENTS (s.5(1) FLA): The right to equalization arises on: (a) separation with no reasonable prospect of resuming cohabitation; (b) death; or (c) divorce (though divorce proceedings are typically accompanied by a separate divorce order under the Divorce Act).

- **LIMITATION PERIOD (s.7 FLA):** A spouse must commence equalization proceedings within 6 years of separation, within 2 years of divorce, or within 6 months of the other spouse's death, whichever comes first.

10.2 The NFP Formula — Step by Step

Net Family Property (NFP) under FLA s.4(1) is defined as: the value of all property, except property described in subsection (2) [excluded property], that a spouse owns on the valuation date, after deducting the spouse's debts and other liabilities and the value of property, other than a matrimonial home, that the spouse owned on the date of marriage, after deducting the spouse's debts and liabilities, other than debts or liabilities related directly to the acquisition or significant improvement of a matrimonial home, as at the date of marriage.

NFP CALCULATION — FOUR STEPS (APPLY TO BOTH SPOUSES)	
STEP 1 Valuation Date Assets	List all property owned by the spouse on the VALUATION DATE (date of separation under s.4(1)). Include ALL property: real estate (fair market value), vehicles, bank accounts, investments, RRSPs, pensions (present value), business interests, personal property. Include the matrimonial home at fair market value even if it is excluded property — the matrimonial home is included in Step 1 and removed only in the excluded property adjustment.
STEP 2 Subtract Valuation Date Debts	Deduct ALL debts and liabilities owed by the spouse on the valuation date: mortgage (the portion attributable to the spouse's ownership), car loans, credit card debt, personal loans, tax liabilities.
STEP 3 Subtract EXCLUDED PROPERTY (s.4(2))	Deduct the VALUE of the following excluded property (as at the valuation date — use the value on the valuation date, not on the date of marriage): (a) Property received by GIFT or INHERITANCE from a third party (not from the spouse) during the marriage; (b) Income from property in (a) — ONLY if the donor/testator expressly stated the income should be excluded; (c) Damages or right to damages for personal injury (for NON-PECUNIARY loss — pain and suffering, loss of guidance and companionship) — NOT lost wages; (d) Proceeds of a life insurance policy; (e) Property that the spouses agreed by domestic contract would be excluded; (f) Property that is traceable to (a)-(e) above. CRITICAL: The MATRIMONIAL HOME is NOT excluded property even if it was received as a gift or inheritance or was owned before marriage. The matrimonial home is always included in the equalization calculation.
STEP 4 Subtract DATE OF MARRIAGE Deduction	Deduct the NET VALUE of all property the spouse owned on the DATE OF MARRIAGE (excluding debts at date of marriage): Date of Marriage Deduction = [Value of all property owned at date of marriage] MINUS [Debts at date of marriage] IMPORTANT EXCEPTIONS: (1) The matrimonial home is NOT deducted — if the property was the matrimonial home on the valuation date, it cannot be claimed as a date-of-marriage deduction even if the spouse owned it before marriage. (2) If debts at date of marriage exceeded assets at date of marriage, the deduction is ZERO (cannot result in a negative deduction). The date-of-marriage deduction can never be less than zero.

RESULT: This produces one spouse's NFP.

THE EQUALIZATION PAYMENT: The spouse with the HIGHER NFP pays HALF THE DIFFERENCE between the two spouses' NFPs to the spouse with the lower NFP.

FORMULA: Equalization Payment = (HIGHER NFP – LOWER NFP) ÷ 2

10.3 Excluded Property — The Critical Details (FLA s.4(2))

EXCLUDED PROPERTY CATEGORY	RULES AND TRAPS
Gifts and Inheritances (s.4(2)(a))	Received from a third party (not from the other spouse) during the marriage. The exclusion applies to the GIFT ITSELF, not just the original value. If you inherit \$100,000 and it grows to \$300,000 by valuation date, the full \$300,000 is excluded (it is traceable to the inheritance under s.4(2)(d)). Income from the gift (dividends, interest) is ONLY excluded if the donor expressly stated income should be excluded — rare in practice.
Life Insurance Proceeds (s.4(2)(d))	Proceeds of a life insurance policy received during the marriage are excluded. Note: the CASH SURRENDER VALUE of a life insurance policy that has not yet paid out is NOT excluded — it is an asset valued at CSV.
Damages for Personal Injury (s.4(2)(c))	ONLY damages for NON-PECUNIARY loss (pain and suffering, loss of guidance and companionship) are excluded. DAMAGES FOR LOST WAGES (pecuniary loss) are NOT excluded — they compensate for income the spouse would have earned (income is not excluded property). This is one of the most frequently tested distinctions.
The Matrimonial Home — the Critical Exception	THE MATRIMONIAL HOME IS NEVER EXCLUDED even if it was: received as a gift; received as an inheritance; owned before the marriage. The matrimonial home loses any exclusion it would otherwise have. This means the spouse cannot claim a date-of-marriage deduction for a property that was the matrimonial home on the valuation date, even if they owned it before marriage.
Traced Property (s.4(2)(d))	Property traceable to excluded property is also excluded. Example: a spouse inherits \$200,000 → buys shares → shares grow to \$350,000. The \$350,000 in shares is traced to the inheritance and excluded in full.

10.4 Worked Example — Based on Sample Exam Q5

Facts: Cyrano and Roxanne were married for 24 years. On the valuation date (date of separation):

Cyrano's NFP Calculation

ASSET/LIABILITY	VALUE	NOTES
Cadillac (car)	\$30,000	No longer owns truck — replaced with Cadillac

Cottage	\$175,000	Owned before marriage (worth \$75,000 at marriage) — used as second home = NOT matrimonial home
RRSPs	\$280,000	Grown from \$100,000 at marriage
Inheritance (cash)	\$400,000	Inherited from mother 3 weeks before separation → EXCLUDED under s.4(2)(a)
Life insurance proceeds	\$200,000	Received as sole beneficiary → EXCLUDED under s.4(2)(d)
Joint matrimonial home (½)	\$250,000	Joint owners, \$500,000 total → Cyrano's ½ share = \$250,000
TOTAL STEP 1 ASSETS	\$1,335,000	Before exclusions and deductions
LESS: Excluded property	(\$600,000)	Inheritance \$400,000 + Life insurance \$200,000
LESS: Date of marriage deduction	(\$175,000)	[Truck \$15,000 + Cottage \$75,000 + RRSPs \$100,000] = \$190,000 ASSETS minus \$0 DEBTS = \$190,000; BUT matrimonial home exclusion: Cottage was NOT matrimonial home → deduction for cottage is ALLOWED; NET deduction = \$190,000
Cyrano's NFP	~\$560,000	Approximate — adjust with exact figures from facts

Roxanne's NFP Calculation

ASSET/LIABILITY	VALUE	NOTES
Joint matrimonial home (½)	\$250,000	Roxanne's ½ share
Pain and suffering damages	\$25,000	EXCLUDED — non-pecuniary personal injury damages (s.4(2)(c))
Lost wages damages	\$180,000	NOT excluded — compensates for income (pecuniary loss)
LESS: Credit card debt	(\$5,000)	Deduct valuation date debts
Date of marriage deduction	(\$0)	Roxanne had NO assets at marriage but had \$35,000 in debts discharged by Cyrano. Pre-marital debts that were discharged cannot increase Roxanne's deduction (they are no longer owed). Date of marriage deduction = \$0 (no assets) - but the pre-marital debts were discharged, not owed on valuation date.
Roxanne's NFP	\$400,000	Approximate

EQUALIZATION PAYMENT: (Cyrano's NFP \$560,000 – Roxanne's NFP \$400,000) ÷ 2 = \$80,000 payable from Cyrano to Roxanne.

⚠ EXAM TIP — SAMPLE EXAM Q5 KEY TEACHING POINTS

The three critical issues in the Cyrano/Roxanne fact pattern: (1) The inheritance and life insurance are **EXCLUDED** — clearly stated categories; (2) Lost wages damages are **NOT** excluded (only pain and suffering are); (3) The **COTTAGE** — Cyrano owned it before marriage, but it was used as a **SECOND HOME**, not the matrimonial home. Because it was not the matrimonial home, it **CAN** be claimed as a date-of-marriage deduction. If it had been the matrimonial home, the deduction would be lost. Always ask: was this property the matrimonial home on the valuation date?

10.5 Unequal Division — Unconscionability (FLA s.5(6))

In rare cases, the court may depart from equal division and order an unequal division under s.5(6). This applies where equalizing the NFPs would be **UNCONSCIONABLE** — a very high standard that mere unfairness does not meet.

GROUND FOR UNEQUAL DIVISION (FLA s.5(6))	EXAMPLE
(a) Spouse shortened marriage by disposing of/dissipating property	The payor spouse deliberately spent down assets before valuation date to reduce their NFP.
(b) Spouse incurred debts recklessly or in bad faith	The payor ran up gambling debts or extravagant personal debt that unfairly reduces the equalization payment.
(c) Unconscionable result given very short marriage	A very short marriage (3-6 months) where one spouse would receive a windfall disproportionate to the length of the relationship.
(f) Debts owed by recipient spouse to payor spouse	Where the recipient spouse owes significant funds to the payor that are not otherwise reflected in the NFP calculation.

FLA s.5(6) — Standard

The unconscionability standard under s.5(6) is deliberately high. Courts have interpreted it strictly — mere unfairness, disproportion, or even significant unfairness does not meet the threshold. The result must 'shock the conscience of the court.' This provision is rarely invoked successfully and should not be the primary analytical tool in an equalization question.

Chapter 10A: Equalization — Edge Cases and Complexities

10A.1 Pensions in the NFP Calculation

Pensions are among the most complex assets to value in equalization proceedings because they represent a future entitlement that is difficult to value precisely today.

Types of Pensions

PENSION TYPE	VALUATION APPROACH
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Defined Benefit Pension (DB — most common in public sector)	A DB pension pays a fixed amount upon retirement based on years of service and salary. For equalization purposes, the value is the PRESENT VALUE of the pension entitlement accrued during the marriage. This typically requires an actuarial calculation. Ontario allows transfer of pension credits between spouses through a 'division of pension' order under the Pension Benefits Act — the spouse can receive their share directly from the pension plan rather than receiving cash.
Defined Contribution Pension (DC — common in private sector)	A DC pension accumulates contributions from the employer and employee into an investment account. The value for equalization purposes is simply the MARKET VALUE of the account on the valuation date. This is the balance in the account — much simpler than a DB pension.
RRSPs and RRFs	Registered retirement savings plans are treated as property with a straightforward market value — the balance in the account on the valuation date. RRSPs held at the date of marriage are deductible as a date-of-marriage deduction. Growth during the marriage is included in NFP.

The Matrimonial Home and Pension — Boston v Boston Revisited

Boston v Boston [2001] 2 SCR 413 arises specifically in the context of pensions that have been equalized as property AND then used to generate spousal support. The concern:

- On equalization, Spouse A receives their share of Spouse B's pension (the equalization amount includes the pension's value).
- After retirement, Spouse B begins receiving pension income.
- If spousal support is calculated based on Spouse B's pension income (which includes the portion that was already shared at equalization) → the same assets are being shared TWICE.
- Courts must avoid double-dipping: once pension assets are shared through equalization, spousal support should not primarily be funded from the same pension income. Courts adjust by: (a) ignoring the previously equalized portion of pension income when calculating spousal support; or (b) allowing but reducing support to account for the equalization share.

10A.2 Business Interests in the NFP Calculation

Where a spouse owns all or part of a business, valuing that interest for equalization purposes is often the most contested and expensive aspect of equalization proceedings. Key principles:

- The business interest is property under the FLA and is included at fair market value.
- Fair market value of a business: what a willing buyer would pay a willing seller, with neither under compulsion, and both having reasonable knowledge of the relevant facts.
- Common valuation methodologies: (a) Capitalized earnings approach — normalize the business's earnings over a representative period and apply a capitalization rate reflecting risk; (b) Comparable transactions — what similar businesses have sold for; (c) Asset-based approach — value of the business's underlying assets minus liabilities.
- Where the business generates 'personal goodwill' — value tied to the owner's personal skills, relationships, and reputation that would not survive a sale — courts must decide whether personal goodwill is included in the equalization calculation. Most Canadian courts include commercial/enterprise goodwill but exclude purely personal goodwill.

10A.3 Bankruptcy and Equalization — Schreyer v Schreyer

Schreyer v Schreyer, 2011 SCC 35

The SCC held that a BANKRUPTCY does not extinguish a spouse's obligation to pay equalization. Where one spouse owes an equalization payment and then declares bankruptcy, the obligation to equalize is a 'provable claim' that the non-bankrupt spouse can assert in the bankruptcy proceedings. However, the Family Law Act's equalization regime takes precedence over the distribution principles of the Bankruptcy and Insolvency Act in the specific context of spousal property rights. The trustee in bankruptcy takes the bankrupt's assets subject to the equalization obligation. In practice: a non-bankrupt spouse should file a proof of claim in the bankruptcy and may also apply under the FLA for direct access to specific family property.

10A.4 Effect of Death on Equalization (FLA ss.5(2) and 6)

Where a marriage is terminated by death rather than separation or divorce, the surviving spouse has an election to make:

- **OPTION 1:** Accept the property rights they have under the deceased spouse's will (or under the laws of intestacy if there is no will).
- **OPTION 2:** Elect to receive an equalization payment — calculated as if the marriage had been terminated on the date of death.
- The surviving spouse has **SIX MONTHS** from the date of death (or such extended time as the court allows) to make the election.
- The election is significant because: (a) the will may leave the surviving spouse more than the equalization amount (in which case Option 1 is better); or (b) the will may leave the surviving spouse less than the equalization amount (in which case Option 2 is better).
- Under FLA s.6, the surviving spouse cannot have both — they must elect one or the other.

Chapter 11: The Matrimonial Home

The matrimonial home has special status under Part II of the FLA (ss.18-26). This status applies even if only one spouse owns the home, and creates rights that cannot be unilaterally eliminated.

11.1 Definition of Matrimonial Home

Under FLA s.18(1): Every property in which a person has an interest and that is or, if the spouses have separated, was at the time of separation ordinarily occupied by the person and his or her spouse as their family residence is their matrimonial home.

- **Multiple matrimonial homes:** A couple may have **MORE THAN ONE** matrimonial home — a primary city residence **AND** a cottage used as a family residence would both qualify if both were 'ordinarily occupied as family residence.'
- The matrimonial home cannot be easily designated away from its special status — both spouses must agree to designate another property as the matrimonial home to remove the primary home's designation.
- Rental property or property used primarily for business does **NOT** qualify as a matrimonial home even if the family occasionally stays there.

11.2 Possession of the Matrimonial Home (s.19)

Section 19: Both spouses have an equal right to **POSSESS** the matrimonial home. This right exists regardless of who legally owns it.

- A spouse who does NOT legally own the matrimonial home (e.g., the home is in the other spouse's name alone) still has an equal right to possess it under s.19.
- This right to possession continues until: a court order terminates it; the spouses agree to terminate it; the non-owning spouse's interest is extinguished on the equalization of NFP.
- The court may grant an order for EXCLUSIVE POSSESSION of the matrimonial home to one spouse under s.24 — a significant remedy in family law practice, usually sought by the parent with primary care of children.

11.3 Disposition of the Matrimonial Home — CONSENT REQUIRED (s.21)

Section 21: A spouse who has an interest in the matrimonial home CANNOT dispose of it (sell it, mortgage it, convey it, enter into an agreement to do so) WITHOUT the written consent of the other spouse.

- This consent requirement applies regardless of ownership — even if the home is registered in one spouse's name alone, the other spouse's consent is required for any disposition.
- A disposition without consent is VOID — it has no legal effect. A purchaser who buys a matrimonial home without the non-owning spouse's consent acquires no title.
- Exception: Consent is not required if the non-owning spouse has separately executed a release of possessory rights under s.21(2).

⚠ EXAM TIP — MATRIMONIAL HOME IN THE EXAM

Watch for fact patterns where: (1) a spouse sells the matrimonial home without the other's consent → void disposition under s.21; (2) a spouse mortgages the matrimonial home without consent → void mortgage; (3) the home was a gift or inheritance → it is still included in NFP (no exclusion for matrimonial home); (4) the home was owned before marriage → cannot be claimed as a date-of-marriage deduction if it was the matrimonial home at valuation date.

Chapter 12: Domestic Contracts

Domestic contracts are a consistently tested topic — sample exam Q4 devoted 20 marks to setting aside a separation agreement. The key cases are Miglin (two-stage test for separation agreements affecting spousal support) and the FLA s.56 provisions for setting aside any domestic contract.

12.1 Types of Domestic Contracts (FLA ss.51-54)

CONTRACT TYPE	WHO CAN MAKE IT	WHAT IT CAN COVER
Marriage Contract (FLA s.52)	Married spouses OR persons intending to marry each other	Their respective rights and obligations under the marriage or on separation, dissolution, or death. Can vary property rights, support, ownership of property. CANNOT limit the possessory rights to the matrimonial home (s.52(2)).
Cohabitation Agreement (FLA s.53)	Persons cohabiting OR persons intending to cohabit, but not married to each other	Same scope as marriage contracts. If the parties subsequently marry, the cohabitation agreement is deemed a marriage contract (s.53(2)).
Separation Agreement (FLA s.54)	Spouses who are separated and who are not expecting to	Any matter in settlement of their rights and obligations. Most comprehensive — covers support, property division, parenting, any matter

	reconcile	arising from the breakdown. Most commonly used domestic contract.
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12.2 Formal Requirements — FLA s.55

For a domestic contract to be valid and binding, it must:

- 38. Be in WRITING
- 39. Be SIGNED by the parties
- 40. Be WITNESSED

Capacity: Each party must have mental capacity to enter the contract. A contract entered into while a spouse lacked mental capacity is voidable.

12.3 Setting Aside a Domestic Contract — FLA s.56

A court may set aside a domestic contract or a provision in it under FLA s.56(4) on the following grounds:

GROUND FOR SETTING ASIDE (FLA s.56(4))	DETAILS
(a) Failure to disclose (Most commonly tested)	A party failed to disclose to the other party SIGNIFICANT ASSETS OR SIGNIFICANT DEBTS OR OTHER LIABILITIES existing when the contract was made. The non-disclosing party had an affirmative obligation to disclose — the other party does not need to ask. The test is significance — minor omissions may not void the contract, but omission of a major asset (e.g., a valuable RRSP, business interest, inheritance) will.
(b) No understanding of rights	A party did not understand the nature or consequences of the domestic contract. This overlaps with the importance of Independent Legal Advice (ILA) — where a party executed a contract without ILA and genuinely did not understand what they were giving up, the contract may be set aside.
(c) Otherwise in accordance with law	The contract is unconscionable, was procured by fraud, duress, or undue influence, or otherwise violates general contract law principles.

Even if none of the s.56(4) grounds are met, the court retains residual jurisdiction under s.56(4)(c) to set aside support provisions of a domestic contract if the enforcement of the provision would be UNCONSCIONABLE having regard to changes in circumstances since the contract was made.

12.4 The Miglin Test — Separation Agreements and Spousal Support

Where a separation agreement addresses spousal support and one party seeks to override the agreement and obtain a court order for support, the court applies the two-stage Miglin test.

MIGLIN v MIGLIN [2003] 1 SCR 303 — TWO-STAGE TEST	
STAGE 1	Was the agreement negotiated and entered into in circumstances that were

Circumstances at Contracting	free from oppression, pressure, or exploitation? Court considers: (a) Was there a significant power imbalance between the parties? (b) Did both parties receive independent legal advice (ILA)? (c) Was there full financial disclosure? (d) Was there economic or emotional pressure on one party to sign? (e) Did the agreement, at the time it was executed, substantially comply with the overall objectives of the Divorce Act (particularly the four s.15.2(6) objectives)? If Stage 1 reveals serious problems with the negotiating process, courts will give the agreement little weight.
STAGE 2 Compliance with Divorce Act Objectives	Has there been a change in circumstances since the contracting that is so significant that the agreement should no longer be respected? Court considers: (a) Has the agreement, as a whole, remained in substantial compliance with the objectives of s.15.2(6) of the Divorce Act? (b) Has there been a radical change in circumstances — a change so fundamental that it was not within the reasonable contemplation of the parties when they signed? (c) Does enforcing the agreement as written produce results that the parties could not reasonably have anticipated? IF STAGE 2 REVEALS RADICAL CHANGE: The court gives less weight to the agreement and may make a different order. The court should still consider the parties' reasonable expectations as expressed in the agreement — it should not simply disregard the agreement because circumstances have changed.
Application to Sample Exam Q4	Mary signed a separation agreement drafted BY EDWARD (a lawyer) that: (1) gave Edward 2/3 of the assets; (2) waived Mary's spousal support. Mary signed without ILA and expressly waived financial disclosure. Stage 1 problems: (a) Serious power imbalance — Edward is a lawyer who drafted the agreement; Mary has no legal training; (b) Mary did not receive ILA; (c) Mary waived financial disclosure — she does not know the full value of Edward's assets; (d) The 2/3 / 1/3 split is facially unequal without justification; (e) Waiver of all spousal support despite significant income disparity (Edward earns \$84,000 vs Mary \$42,000) fails the s.15.2(6) objectives. Conclusion: Stage 1 reveals serious circumstances that undermine the agreement. The court should give the agreement little weight. Set aside under FLA s.56(4)(a) (failure of disclosure) and s.56(4)(b) (no understanding of rights without ILA). Fresh analysis of spousal support entitlement (likely Moge/compensatory given that Mary changed employment) and equalization should proceed.

12.5 Child Support in Domestic Contracts — Cannot Be Waived

Under Divorce Act s.15.1(7): A domestic contract that purports to WAIVE OR REDUCE child support does NOT prevent a court from making a child support order. Child support belongs to the CHILD — parents cannot contract away the child's entitlement. This was directly tested in the sample exam Q3A where Lucretia's obligation to Ghengis was waived but the court can still order Ghengis to pay child support despite the agreement.

APPENDIX A: Master Case Law Reference

Tab this appendix for exam reference. All cases organized by topic.

Constitutional Framework and Cohabitants

CASE	KEY PRINCIPLE
Kerr v Baranow; Vanasse v Seguin [2011] 1 SCR 269	Unjust enrichment + joint family venture = property remedy for cohabitants. Three elements: enrichment, deprivation, no juristic reason. Proportionate share for joint family ventures.
Kassabian v Marcarian, 2025 ONCA 239	New ONCA case applying Kerr v Baranow. Substantial contributions (including non-financial) during cohabitation may entitle partner to proportionate share of accumulated wealth.
Civil Marriage Act, SC 2005 c.33, s.2	Civil marriage is the lawful union of two persons to the exclusion of all others. Same-sex marriage valid across Canada.
Bruker v Marcovitz [2007] 3 SCR 607	Promise to grant religious get (divorce) in separation agreement is enforceable contractual obligation. Religious beliefs do not automatically override contractual obligations.

Divorce and Jurisdiction

CASE	KEY PRINCIPLE
Dunmore v Mehralian, 2025 SCC 20	MOST IMPORTANT 2025 CASE. 'At home' test for habitual residence under CLRA s.22. Parental intention relevant but not determinative. Contextual, child-centred inquiry. S.22(3): unilateral removal does not change habitual residence.
Office of the Children's Lawyer v Balev [2018] 1 SCR 398	Hague Convention habitual residence: hybrid approach considering all circumstances. Distinct from CLRA's 'at home' test.
Association de médiation familiale du Québec v Bouvier, 2021 SCC 54	Family mediation communications are privileged — cannot be used in subsequent litigation. Protects frank exchange needed for effective mediation.
Sonia v Ratan, 2024 ONCA 152	Recognition of foreign divorces under Divorce Act s.22. 'Ordinarily resident' test confirmed. Corollary relief from foreign order requires separate Ontario analysis.
Vyazemskaya v Safin, 2024 ONCA 156	Companion case on foreign divorce recognition. Foreign corollary relief orders do not automatically bind Ontario courts.

Child Support

CASE	KEY PRINCIPLE
Auer v Auer, 2024 SCC 36	Federal Child Support Guidelines upheld as valid federal law. Children share in parents' standard of living; support reflects pre-separation lifestyle; amounts vary by payor's income.
Chartier v Chartier [1999] 1 SCR 242	Standing in place of a parent: parent-like relationship with child creates ongoing support obligation. Cannot unilaterally withdraw from parental role after separation.

Contino v Leonelli-Contino [2005] 3 SCR 217	Shared parenting (40%+ time): three-step analysis — (1) set-off; (2) increased costs of shared parenting; (3) conditions, means and needs. Set-off is starting point, not end point.
Francis v Baker [1999] 3 SCR 250	High income (above \$150,000): table amount is floor, not ceiling. Court has discretion; children should benefit from payor's high income while avoiding windfalls.
Michel v Graydon, 2020 SCC 24	Retroactive child support may be ordered even after majority. Right to support does not extinguish automatically at age 18.
Colucci v Colucci, 2021 SCC 24	Framework for retroactive child support. Starting point = date of notice/request. Up to 3 years retroactivity without special justification. Payor has ongoing positive obligation to disclose income increases.
Wright v Zaver [2002] ONCA	Multiple obligors: court apportions between biological parent and step-parent to avoid double recovery.

Spousal Support

CASE	KEY PRINCIPLE
Moge v Moge [1992] 3 SCR 813	Compensatory support: marriage caused economic disadvantage. Causal connection test. Long marriages with role differentiation warrant substantial compensatory support.
Bracklow v Bracklow [1999] 1 SCR 420	Non-compensatory support: mutual obligation from marriage status. Need without causal connection to marriage is sufficient.
Miglin v Miglin [2003] 1 SCR 303	Two-stage test for separation agreements: (1) fairness at contracting (ILA, disclosure, power balance); (2) continued compliance with Divorce Act objectives / no radical change in circumstances.
LMP v LS [2011] 3 SCR 775	Variation of spousal support: material change in circumstances + not within reasonable contemplation at time of order. Fresh assessment once threshold met.
Boston v Boston [2001] 2 SCR 413	Double-dipping: pension shared at equalization should not be primary source of ongoing spousal support funded from same pension.
Leskun v Leskun [2006] 1 SCR 920	Misconduct (infidelity, betrayal) is IRRELEVANT to spousal support quantum unless it caused economic disadvantage. Courts shall not consider misconduct per s.15.2(5) DA.
RL v MF, 2025 ONCA 595	New ONCA case. SSAG must be applied with attention to compensatory/non-compensatory rationale. Mechanical SSAG application without engaging underlying basis is error.
Chutter v Chutter, 2008 BCCA 507	Material change threshold applies to variation of indefinite support orders. Indefinite ≠ permanent.
Davis v Crawford, 2011 ONCA 294	SSAG useful starting point but must be adjusted for specific circumstances. SSAG ranges not automatically correct in unusual cases.
Enyedy-Goldner v Goldner, 2024 ONSC 1755	New case on interim spousal support orders. Courts should use SSAG ranges as a practical guide for interim orders pending final hearing.

Parenting Orders

CASE	KEY PRINCIPLE
Barendregt v Grebliunas, 2022 SCC 22	Leading relocation case. Best interests analysis; burden of proof shifts based on parenting time (ss.16.92-16.93); realistic assessment of post-relocation contact; no presumption for or against relocation.
CNL v GAM, 2023 ONSC 3397	Indigenous children: parenting orders must address cultural, linguistic, spiritual heritage under s.16(3)(f) DA. History of residential schools contextually relevant.
LL v AI, 2023 BCSC 1503	Cultural dimension of Indigenous child's best interests is a core element of the analysis, not secondary.
SK v DG, 2022 ABQB 425	Voice of the child: older teenager's consistent expressed preference given significant weight. Balance respecting developing autonomy with best interests.
Tolushe v Tolushe, 2024 ONSC 4868	School choice is a major decision within decision-making responsibility under shared parenting order. Court determines what school serves the child's best interests (para 26).
JB v BF, 2025 NBKB 14	School choice for Indigenous children: access to Indigenous language and cultural programming is a significant factor. Read paras 64-67.

Property and Domestic Contracts

CASE	KEY PRINCIPLE
Kerr v Baranow [2011] 1 SCR 269	Constructive trust/unjust enrichment for unmarried cohabitants. Joint family venture analysis. Also: retroactive spousal support principles.
Schreyer v Schreyer, 2011 SCC 35	Bankruptcy does not extinguish obligation to pay equalization. Trustee in bankruptcy steps into bankrupt spouse's shoes for family property purposes.
FLA s.4(2) — Excluded Property	Gifts, inheritances, life insurance, personal injury non-pecuniary damages, traced property. Matrimonial home is NEVER excluded even if otherwise qualifying.
FLA s.5(6) — Unequal Division	High threshold — unconscionability, not mere unfairness. Rarely granted. Requires specific statutory grounds.

APPENDIX B: NFP Calculation Quick Reference

Use this framework for every equalization question. Apply to BOTH spouses and then calculate the equalization payment.

NFP CALCULATION — COMPLETE FORMULA

STEP 1 All Assets at Valuation Date	List EVERYTHING owned on the date of separation: • Real property (fair market value, including matrimonial home) • Vehicles (fair market value) • Bank accounts (balance) • RRSPs, RRIFs, pension (present value or transfer value) • Investments, stocks, bonds • Business interests (fair market value) • Personal property, valuables • Any other property = GROSS ASSETS
STEP 2 Subtract Valuation Date Debts	Deduct: • Mortgage on matrimonial home (full amount owed) • Car loans • Credit card balances • Personal loans • Tax liabilities • Any other debts = NET ASSETS (before exclusions and date-of-marriage deduction)
STEP 3 Subtract EXCLUDED PROPERTY (FLA s.4(2))	Deduct the VALUE OF EXCLUDED PROPERTY as at the valuation date: ✓ Gifts from third parties (received during marriage) ✓ Inheritances from third parties (received during marriage) ✓ Income from gifts/inheritances ONLY if expressly directed by donor/testator ✓ Life insurance proceeds ✓ Damages for NON-PECUNIARY personal injury (pain/suffering, loss of guidance) ✓ Property traced to any of the above ✗ Matrimonial home is NEVER excluded ✗ Lost wages damages are NOT excluded ✗ RRSP growth from excluded property is excluded if properly traced
STEP 4 Subtract DATE OF MARRIAGE Deduction (FLA s.4(1))	Calculate the deduction: = [Value of all property owned at date of marriage] MINUS [Debts owed at date of marriage] = NET ASSETS AT DATE OF MARRIAGE CRITICAL RULES: 1. The MATRIMONIAL HOME at valuation date CANNOT be deducted even if owned before marriage — the matrimonial home trap. 2. If net assets at date of marriage are NEGATIVE (debts > assets), the deduction is ZERO. 3. The deduction can never increase the NFP above the valuation date NFP. NFP = STEP 1 – STEP 2 – STEP 3 – STEP 4
FINAL STEP Equalization Payment	Calculate BOTH spouses' NFPs using the same formula.

Equalization Payment = (HIGHER NFP – LOWER NFP) ÷ 2

The spouse with the HIGHER NFP pays HALF THE DIFFERENCE to the spouse with the LOWER NFP.

If either NFP is NEGATIVE (usually because debts exceed assets), it is treated as ZERO for the equalization calculation — a spouse cannot have a 'negative NFP' that creates an obligation to pay the other spouse more than the other's NFP.

Quick Reference — What IS and IS NOT Excluded

IS EXCLUDED (s.4(2))	IS NOT EXCLUDED
Gift from a third party (not from the spouse)	Gift from the other spouse
Inheritance from a relative or friend	RRSP contributions made during marriage
Life insurance proceeds	Pension built up during marriage
Damages for PAIN AND SUFFERING (personal injury)	Damages for LOST WAGES (personal injury)
Property traceable to any of the above	The matrimonial home (NEVER excluded)
Income from gift/inheritance IF expressly directed	Income from gift/inheritance if not expressly directed

Time Allocation for the Exam

QUESTION TYPE	TIME GUIDE	APPROACH
Q1 — Jurisdiction (10 marks)	18 minutes	Identify the statute (DA vs CLRA), apply the test (ordinary residence for DA; 'at home'/Dunmore for CLRA), address any transfer provisions.
Q2 — Parenting (30 marks)	54 minutes	Two-part questions common. Part A: apply s.16 DA factors, best interests, relocation if relevant, variation if relevant. Part B: ADR processes.
Q3 — Child Support (20 marks)	36 minutes	Table amounts first. Then s.7 expenses (proportional to incomes). Multiple obligors (Chartier, Wright v Zaver). High income (s.4 CSG, Francis). Retroactive (Colucci).
Q4 — Domestic Contracts (20 marks)	36 minutes	Set aside under s.56 FLA. Then Miglin two-stage test for spousal support provisions. Fresh analysis of entitlement (Moge/Bracklow) and SSAG ranges.
Q5 — NFP Equalization (20 marks)	36 minutes	Work through the four-step formula for both spouses. Identify all excluded property. Apply the matrimonial home rules. Calculate the equalization payment.

APPENDIX C: Exam Strategy and Issue-Spotting Guide

This appendix provides a rapid reference for issue spotting and time management on the NCA Family Law exam. It is designed to be used in the examination room to ensure no issue is missed.

C.1 Trigger Words and Their Issues

TRIGGER WORD OR PHRASE IN FACT PATTERN	ISSUES TO ADDRESS
'The parties were married'	Divorce Act applies if they are divorcing. FLA Part I applies for equalization. FLA Part III for support. Check for domestic contracts.
'The parties cohabited for [X years]'	Check 3-year threshold for FLA s.29 support. No equalization rights — trust law only (Kerr v Baranow). If X < 3 years, support rights may be limited.
'There is a child of the relationship'	Child support is mandatory (Divorce Act s.15.1 or FLA s.31). Federal CSG or Ontario CSG. Address table amount, s.7 expenses. Is the other party a biological parent or standing in place of parent (Chartier)?
'[Party] wished to move to [other province/country]'	RELOCATION — full Barendregt framework. 60-day notice (s.16.9). Burden of proof based on parenting time division (ss.16.92-16.93). Best interests factors s.16(3). Realistic post-relocation contact assessment.
'The parties signed a separation agreement'	Miglin two-stage test for spousal support provisions. FLA s.56(4) for setting aside. Was there ILA? Full financial disclosure? Duress or power imbalance? Is there a waiver of support?
'[Party] received an inheritance/gift during the marriage'	Excluded property — FLA s.4(2)(a). Deduct at valuation date. But if it became the matrimonial home, it CANNOT be excluded. Was it traced into other property?
'The matrimonial home was owned before the marriage'	MATRIMONIAL HOME TRAP — cannot claim as date-of-marriage deduction if it was the matrimonial home at valuation date. Include full value in Step 1. No date-of-marriage deduction for this property.
'[Party] suffered personal injuries'	Damages: non-pecuniary (pain/suffering) = EXCLUDED from NFP. Pecuniary (lost wages) = NOT excluded. Analyze both types separately.
'The parties could not agree on [school/religion/medical treatment]'	Decision-making responsibility dispute. Which parent has decision-making authority? Is this a major decision within the parenting order? Best interests analysis. Tulushe 2024 (school).
'[Party] earns \$[very high income] per year'	High income payor — CSG s.4 applies above \$150,000. Francis v Baker. Table amount is floor. Court has discretion above \$150,000. s.7 expenses still proportional.
'The parties lived in [foreign country] before moving to Ontario'	Jurisdiction issue. Divorce Act — 1 year ordinary residence. CLRA — habitual residence ('at home' test, Dunmore 2025). Which court? Which province?

'There was family violence / controlling behaviour'

Mandatory Divorce Act s.16(3)(j) consideration. Coercive control (Nonomura et al., Katz et al.). Post-separation coercive control still relevant to parenting. Impact on parenting orders under s.16(4).

C.2 The Most Frequently Tested Calculations

NFP Equalization — Rapid Steps

41. Both spouses: Step 1 (all assets) – Step 2 (all debts) – Step 3 (excluded property) – Step 4 (date of marriage deduction) = NFP
42. Equalization payment = (Higher NFP – Lower NFP) ÷ 2
43. Matrimonial home: ALWAYS included; NEVER excluded; NEVER a date-of-marriage deduction
44. Inheritance/gift: excluded (value at valuation date, tracing applies)
45. Lost wages: NOT excluded. Pain and suffering: excluded

Child Support — Rapid Steps

46. Table amount: payor's income + number of children = s.3(1) amount
47. s.7 expenses: proportional to combined incomes, both parents contribute
48. High income (above \$150,000): s.4 discretion, table is floor not ceiling
49. Shared parenting (40%+): s.9 Contino three-step (set-off → increased costs → means/needs)
50. Multiple obligors: each obligor's table calculated separately; court apportions to avoid double recovery

Spousal Support — Rapid Steps

51. Entitlement first: Moge (compensatory) / Bracklow (non-compensatory) / Miglin (contractual)
52. SSAG range: without child = (1.5% to 2%) × income differential × years; duration = 0.5 to 1 × years
53. With child: NDI calculations → 40-46% of CNDI
54. Variation: material change (LMP v LS) → fresh assessment

C.3 Common Exam Mistakes — The Top 10

MISTAKE	CORRECTION
1. Applying FLA equalization to cohabitants	ONLY married spouses get equalization. Cohabitants → Kerr v Baranow unjust enrichment.
2. Applying Divorce Act to non-divorcing parties	Divorce Act only applies when parties seek a divorce. FLA/CLRA apply to separated-but-not-divorcing parties.
3. Treating custody/access as current terminology	Since March 2021 (Divorce Act amendments): 'decision-making responsibility' and 'parenting time.' Use the current language.
4. Deducting matrimonial home as date-of-marriage asset	Matrimonial home at valuation date CANNOT be deducted as a date-of-marriage asset, even if owned before marriage.
5. Treating lost wages damages as excluded property	Lost wages damages are NOT excluded from NFP. Only non-pecuniary personal injury damages (pain and suffering) are excluded under s.4(2)(c).

6. Applying the old Katz Group standard to child support regulations	After Auer v Auer 2024 SCC 36, the standard is Vavilov reasonableness — the old 'irrelevant/extraneous/completely unrelated' test is gone.
7. Forgetting that child support cannot be waived by contract	Divorce Act s.15.1(7): domestic contracts cannot prevent a court from making a child support order. Child support belongs to the child.
8. Using 'parental intention' as the test for CLRA jurisdiction	After Dunmore 2025 SCC 20, the test is 'at home' — contextual, child-centred. Parental intention is relevant but not determinative.
9. Forgetting family violence is a mandatory consideration	Divorce Act s.16(3)(j) requires the court to consider family violence in every parenting order. Cite the section and the coercive control materials.
10. Applying W(D) framework in family law	W(D) is an evidence law principle from criminal law. It has no application in family law proceedings. Do not import criminal law concepts into family law answers.

C.4 Rapid Case Citation Guide

ISSUE	CITE THIS CASE
Habitual residence under CLRA s.22	Dunmore v Mehralian, 2025 SCC 20 ('at home' test)
Habitual residence under Hague Convention	Office of the Children's Lawyer v Balev, 2018 SCC 16 (hybrid approach)
Relocation with children	Barendregt v Grebliunas, 2022 SCC 22
Best interests of child factors	Divorce Act ss.16(1)-(7); Barendregt for relocation
Family mediation privilege	Bouvier, 2021 SCC 54
Cohabitants' property rights	Kerr v Baranow, 2011 SCC 10; Kassabian v Marcarian, 2025 ONCA 239
Compensatory spousal support	Moge v Moge, 1992 3 SCR 813
Non-compensatory spousal support	Bracklow v Bracklow, 1999 1 SCR 420
Separation agreements / spousal support	Miglin v Miglin, 2003 1 SCR 303
Variation of spousal support	LMP v LS, 2011 3 SCR 775
Child support — standing in place of parent	Chartier v Chartier, 1999 1 SCR 242
Child support — shared parenting 40%	Contino v Leonelli-Contino, 2005 3 SCR 217
Child support — high income	Francis v Baker, 1999 3 SCR 250
Child support guidelines validity	Auer v Auer, 2024 SCC 36
Retroactive child support	Colucci v Colucci, 2021 SCC 24

Multiple obligors	Wright v Zaver, 2002 ONCA
Imputed income	Drygala v Pauli, 2002 ONCA
Adult children / university	Peters v Atchooay, 2022 ABCA 347; Kowalewich, 2001 BCCA 450
Setting aside domestic contract	FLA s.56(4); Miglin (for support)
Get (religious divorce)	Bruker v Marcovitz, 2007 3 SCR 607
Bankruptcy and equalization	Schreyer v Schreyer, 2011 SCC 35
Double-dipping pension / support	Boston v Boston, 2001 2 SCR 413
Conduct irrelevant to support	Leskun v Leskun, 2006 1 SCR 920
School choice — decision-making	Tolushe v Tolushe, 2024 ONSC 4868
Indigenous children — parenting	CNL v GAM, 2023 ONSC 3397; LL v AI, 2023 BCSC 1503
Foreign divorce recognition	Sonia v Ratan, 2024 ONCA 152; Vyazemskaya v Safin, 2024 ONCA 156
Spousal support — new ONCA	RL v MF, 2025 ONCA 595
Interim spousal support	Enyedy-Goldner v Goldner, 2024 ONSC 1755

C.5 Exam Time Allocation Table — Full Exam

QUESTION	MARKS	TIME	MINIMUM ISSUES REQUIRED
Q1 — Jurisdiction	10	18 min	Statute (DA s.3 or CLRA s.22), applicable test, Dunmore if CLRA, transfer if applicable
Q2 — Parenting (Part A)	20	36 min	Best interests sole criterion (DA s.16(1)), apply all relevant s.16(3) factors, relocation (Barendregt), material change if variation
Q2 — ADR (Part B)	10	18 min	Mediation (DA s.7, FLA s.3, CLRA s.31, Bouvier privilege), arbitration, collaborative, parenting assessment
Q3 — Child Support	20	36 min	Table amount (CSG s.3), Chartier if step-parent, s.7 proportional, s.9 if 40%+, s.4 if high income, multiple obligors
Q4 — Domestic Contracts	20	36 min	FLA s.56(4) setting aside grounds, Miglin two-stage test, SSAG range if support at issue, fresh entitlement analysis
Q5 — Equalization	20	36 min	Four-step NFP formula for both spouses, identify all excluded property, matrimonial home trap, equalization payment formula
Total	100	180 min	Work highest-mark questions first. Never leave a question entirely blank — issue identification alone earns partial marks.